TITLE 35 - Notaries Public and Commissioners

Table of Contents

RS 35:1	Appointment of notaries public	5
RS 35:1.1	Commissions previously issued	6
RS 35:2	General powers; administration of certain oaths in any parish; true copies	7
RS 35:2.1	Affidavit of corrections	8
RS 35:3	Oaths and acknowledgments	9
RS 35:4	Notaries connected with banks and other corporations; powers	10
RS 35:5	Foreign notaries; oaths, acts, and acknowledgments; effect	11
RS 35:6	Foreign notaries; acts and other instruments; effect	12
RS 35:7	Acts before authorized military personnel; force and effect	13
RS 35:8	Recorder's copies of instruments before military officers; effect	14
RS 35:9	Instruments, before ambassadors and consular officials	15
RS 35:10	Place of executing notarial acts	16
RS 35:11	Marital status of parties to be given	17
RS 35:12	Names to be given in full, together with parties' permanent mailing addresses; identification numbers	18
RS 35:13	Repealed by Acts 1976, No. 384, 1	19
RS 35:14	Disbarred or suspended attorney prohibited from exercising notarial functions	20
RS 35:15	Revocation or suspension of notarial commission or authority to exercise notarial powers	21
RS 35:16	Administrative revocation of notarial commission or authority	22
RS 35:17	Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.	23
RS 35:71	Requirement of bond; suspension of notarial commissions; renewal of bonds; penalty	24
RS 35:72	Bonds; elimination of requirement	25
RS 35:73	Bond not mortgage until suit filed and notice of lis pendens recorded	26
RS 35:74	Inclusion of bonds in mortgage certificates	27
RS 35:75	Substituted notarial bond with personal surety	28
RS 35:76	Release of surety company upon acceptance of personal surety bond	29
RS 35:77	Cancellation of surety company bond	30
RS 35:131	Grant of leave of absence; suspension of prescription	31
RS 35:132	Notaries in military service, leave of absence	32
RS 35:133	Notaries in military service, period of leave	33
RS 35:134	Expiration of bond during military service; renewal	34
RS 35:191	Appointment; qualifications; examination	35
RS 35:191.1	Secretary of state; uniform statewide standards, rules, and procedures for notarial examinations	40
RS 35:191.2	Secretary of state; authority; duties	41

RS 35:191.3	Notary change of address; duty to register	42
RS 35:191.4	Secretary of state; procedures for registration and reporting of notary instructors	43
RS 35:192	Execution and recordation of bond; filing of certificate of competency	44
RS 35:193	Original surety company bond; necessity for recordation	45
RS 35:194	Substitution of personal surety bond or special mortgage	46
RS 35:195	Cancellation of personal surety bond or special mortgage	47
RS 35:196	Substituted surety company bond; necessity for recordation	48
RS 35:197	Repealed by Acts 1977, No. 451, 3	49
RS 35:198	Liability of notary and surety; effect of surety company bond; cancellation of bond for nonpayment	50
RS 35:199	Duty to file, register, or record notarial instruments	51
RS 35:200	Limitation on actions	52
RS 35:201	Granting of commission; prerequisites	53
RS 35:202	Annual report; filing fee; penalties; suspension	55
RS 35:251	NOTARIES IN ORLEANS PARISH	56
RS 35:282	Repealed by Acts 2006, No. 730, §2.	57
RS 35:283	Repealed by Acts 2006, No. 730, §2.	58
RS 35:284	Repealed by Acts 2006, No. 730, §2.	59
RS 35:285	Repealed by Acts 2006, No. 730, §2.	60
RS 35:286	Repealed by Acts 2006, No. 730, §2.	61
RS 35:287	Deputies	62
RS 35:321	Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.	63
RS 35:322	Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.	64
RS 35:323	Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.	65
RS 35:323.1	Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.	66
RS 35:324	Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.	67
RS 35:325	Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.	68
RS 35:326	Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.	69
RS 35:327	Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.	70
RS 35:328	Repealed by Acts 2007, No. 212, §1, eff. July 1, 2007.	71
RS 35:329	Repealed by Acts 1997, No. 1102, 2.	72
RS 35:330	Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.	73
RS 35:331	Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.	74
RS 35:332	Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.	75
RS 35:333	Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.	76
RS 35:334	Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.	77
RS 35:335	Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.	78
RS 35:336	Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.	79
RS 35:337	Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.	80
RS 35:337.1	Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.	81
RS 35:338	Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.	82
RS 35:391	Ex officio notaries; qualifications	83
RS 35:392	Ex officio notaries; bond; oath	84

RS 35:392.1	Ex officio notaries	85
RS 35:393	Ex officio notaries public for the Department of Public Safety and Corrections; powers	86
RS 35:393.1	Ex officio notaries public for the Department of Public Safety and Corrections; appointment by secretary	87
RS 35:394	Ex officio notaries public for the Department of Justice	88
RS 35:395	Ex officio notaries public for the Department of State	89
RS 35:396	Ex officio notaries public for Department of Insurance	90
RS 35:397	Ex officio notaries public for the Louisiana State Racing Commission	91
RS 35:398	Ex officio notaries for district attorneys	92
RS 35:399	Repealed by Acts 2005, No. 55, §2.	93
RS 35:400	Ex officio notaries public for the United States Forest Service	94
RS 35:401	Ex officio notary public for the Sabine River Authority	95
RS 35:402	Ex officio notaries public for the vital records registry	96
RS 35:403	Ex officio notaries for hospital service district hospitals	97
RS 35:404	Ex officio notaries public of the office of financial institutions	98
RS 35:405	Ex officio notary public for levee district police	99
RS 35:406	Ex officio notaries public of the adult protection agency	100
RS 35:407	Ex officio notaries for municipal police departments	101
RS 35:408	Repealed by Acts 2012, No. 866, §3, eff. Jan. 1, 2013.	102
RS 35:409	Ex officio notaries for university police departments	103
RS 35:410	Ex officio notaries public for the Louisiana Agricultural Finance Authority or the Department of Agriculture and Forestry	104
RS 35:411	Ex officio notaries public for the Coastal Protection and Restoration Authority	105
RS 35:412	Ex officio notaries; nonresident persons licensed to practice law with offices in this state	106
RS 35:413	Ex officio notaries public for municipal or parish fire departments and fire protection districts	107
RS 35:414	Ex officio notaries public for Natchitoches Parish government	108
RS 35:415	Ex officio notaries for the Causeway Police Department	109
RS 35:416	Ex officio notaries for coroners	110
RS 35:417	Ex officio notaries public for the DeSoto Parish government	111
RS 35:418	Ex officio notaries public for the Beauregard Parish School Board	112
RS 35:451	COMMISSIONERS [REPEALED]	113
RS 35:511	Forms of acknowledgment	114
RS 35:512	Married women, acknowledgment by	115
RS 35:513	Officers before whom proof or acknowledgment taken in other states	116
RS 35:551	Officers before whom made	117
RS 35:552	Form of certificate of acknowledgment	118
RS 35:553	Acknowledgments in form used in state	119
RS 35:554	Interpretation and construction	120
RS 35:555	Force and effect	121

RS 35:601	Unlawful exercise of notarial powers; penalties	122
RS 35:602	Unlawful exercise of prior authorized or limited notarial powers; penalties	123
RS 35:603	Secretary of state; duties upon receipt of sworn complaint	124
RS 35:604	Applicability to licensed attorneys	125
RS 35:621	Short title	126
RS 35:622	Definitions	127
RS 35:623	Legal recognition of remote online notarial acts	128
RS 35:624	Standards for remote online notarization	129
RS 35:625	Notaries authorized to perform remote online notarization	130
RS 35:625.1	Notaries authorized to perform remote online notarization	131
RS 35:626	Location of notary, parties, and witnesses; location of remote online notarial act	132
RS 35:627	Procedure for performing remote online notarization	133
RS 35:628	Duties of the notary	134
RS 35:629	Records of remote online notarizations	135
RS 35:630	No variation by agreement	136
RS 35:701	Purpose; ratification	137
RS 35:702	Remote notarization authorized	138

RS 35:1

Appointment of notaries public

TITLE 35

NOTARIES PUBLIC AND COMMISSIONERS

CHAPTER 1. GENERAL PROVISIONS

§1. Appointment of notaries public

The governor may appoint, by and with the advice and consent of the Senate, and upon their meeting the qualifications for office provided for in this Title, notaries public in the different parishes.

Amended by Acts 1964, No. 359, §1; Acts 1964, No. 359, §1; Acts 1966, No. 539, §1; Acts 1976, No. 677, §1; Acts 1977, No. 451, §1; Acts 2008, No. 856, §1.

RS 35:1.1

Commissions previously issued

§1.1. Commissions previously issued

A. Notwithstanding any other provision of law to the contrary, this Section shall apply to all acts, documents, or other instruments which were executed by or passed before a notary public who was duly appointed, and to each notarial commission which was issued, on or before January 1, 1999, without the applicant first obtaining a commission in the parish of residence of the applicant, and whose commission was based on the location of the office maintained by the applicant.

B. All acts, documents, or other instruments which were executed by or passed before any notary public commissioned as set forth in Subsection A of this Section shall not be invalid based on the appointment of the notary public or the issuance of the notarial commission.

Added by Acts 1977, No. 451, §2; Acts 1999, No. 949, §2; Acts 2003, No. 926, §1; Acts 2004, No. 562, §1.

RS 35:2

General powers; administration of certain oaths in any parish; true copies

§2. General powers; administration of certain oaths in any parish; true copies

A.(1) Notaries public have power within their several parishes:

(a) To make inventories, appraisements, and partitions;

(b) To receive wills, make protests, matrimonial contracts, conveyances, and generally, all contracts and instruments of writing;

(c) To hold family meetings and meetings of creditors;

(d) To receive acknowledgements of instruments under private signature;

(e) To make affidavits of correction;

(f) To affix the seals upon the effects of deceased persons, and to raise the same.

(2) All acts executed by a notary public, in conformity with the provisions of Civil Code Art. 1833, shall be authentic acts.

(3) Notwithstanding any provision in the law to the contrary, a notary public shall have power, within the parish or parishes in which he is authorized, to exercise all of the functions of a notary public and to receive wills in which he is named as administrator, executor, trustee, attorney for the administrator, attorney for the executor, attorney for the trustee, attorney for a legatee, attorney for an heir, or attorney for the estate.

B. However, each notary public of this state shall have authority to administer oaths in any parish of the state, to swear in persons who appear to give testimony at a deposition before a general reporter or free-lance reporter certified under the provisions of R.S. 37:2551 et seq., and to verify interrogatories and other pleadings to be used in the courts of record of this state. Such oaths, and the certificates issued by such notaries shall be received in the courts of this state and shall have legal efficacy for purposes of the laws on perjury.

C. Every qualified notary public is authorized to certify true copies of any authentic act or any instrument under private signature hereafter or heretofore passed before him or acknowledged before him, and to make and certify copies, by any method, of any certificate, research, resolution, survey or other document annexed to the original of any authentic acts passed before him, and may certify such copies as true copies of the original document attached to the original passed before him.

Amended by Acts 1977, No. 354, §1; Acts 1981, No. 406, §1; Acts 1982, No. 427, §1; Acts 1984, No. 245, §1; Acts 1990, No. 843, §1, eff. July 24, 1990; Acts 2008, No. 856, §1.

RS 35:2.1

Affidavit of corrections

§2.1. Affidavit of corrections

A.(1) A clerical error in a notarial act affecting movable or immovable property or any other rights, corporeal or incorporeal, may be corrected by an act of correction executed by any of the following:

(a) The person who was the notary or one of the notaries before whom the act was passed.

(b) The notary who actually prepared the act containing the error.

(c) In the event the person defined in Subparagraphs (a) or (b) of this Paragraph is deceased, incapacitated, or whose whereabouts are unknown, then by a Louisiana notary who has possession of the records of that person, which records contain information to support the correction.

(2) The act of correction shall be executed before two witnesses and a notary public.

B. The act of correction executed in compliance with this Section shall be given retroactive effect to the date of recordation of the original act. However, the act of correction shall not prejudice the rights acquired by any third person before the act of correction is recorded where the third person reasonably relied on the original act. The act of correction shall not alter the true agreement and intent of the parties.

C. A certified copy of the act of correction executed in compliance with this Section shall be deemed to be authentic for purposes of executory process.

D. This Section shall be in addition to other laws governing executory process.

Acts 1984, No. 245, §2; Acts 1987, No. 407, §1; Acts 1995, No. 216, §1; Acts 2012, No. 397, §1.

RS 35:3

Oaths and acknowledgments

§3. Oaths and acknowledgments

Oaths and acknowledgments, in all cases, may be taken or made by or before any notary public duly appointed and qualified in this state.

RS 35:4

Notaries connected with banks and other corporations; powers

§4. Notaries connected with banks and other corporations; powers

It is lawful for any notary public who is a stockholder, director, officer, or employe of a bank or other corporation to take the acknowledgment of any party to any written instrument executed to or by such corporation, or to administer an oath to any other stockholder, director, officer, employe, or agent of such corporation, or to protest for non-acceptance or nonpayment bills of exchange, drafts, checks, notes, and other negotiable instruments which may be owned or held for collection by such corporation. It is unlawful for any notary public to take the acknowledgment of an instrument by or to a bank or other corporation of which he is a stockholder, director, officer, or employe, where the notary is a party to such instrument, either individually or as a representative of such corporation, or to protest any negotiable instrument owned or held for collection by the corporation, where the notary is individually a party to the instrument.

RS 35:5

Foreign notaries; oaths, acts, and acknowledgments; effect

§5. Foreign notaries; oaths, acts, and acknowledgments; effect

Oaths, acts, and acknowledgments taken, made, or executed by or before any person purporting to be a notary public, duly appointed and duly qualified in any other state, territory of the United States, or the District of Columbia shall have the same force and effect without further proof of the signatures as if taken, made, or executed by or before a notary public in Louisiana. This Section is remedial and shall be retroactive. All oaths, acts, and acknowledgments heretofore made in compliance with the provisions of this Section are hereby validated.

Amended by Acts 1977, No. 233, §1; Acts 1980, No. 320, §1; Acts 1981, No. 313, §1.

RS 35:6

Foreign notaries; acts and other instruments; effect

§6. Foreign notaries; acts and other instruments; effect

All acts passed before any notary public and two witnesses in the District of Columbia, or any state of the United States other than Louisiana, except those performed by remote online notarization, shall be authentic acts and shall have the same force and effect as if passed before a notary public in Louisiana.

Acts 2020, No. 254, §3.

RS 35:7

Acts before authorized military personnel; force and effect

§7. Acts before authorized military personnel; force and effect

A. Every mortgage, sale, lease, transfer, assignment, power of attorney, or other instrument, heretofore or hereafter executed before any person authorized to act as a notary pursuant to 10 U.S.C. 1044a(b), and bearing the signature of such person and the proper designation of his rank and branch of service or subdivision thereof, shall be admissible in evidence and eligible to record in this state, and shall have the same force and effect of an authentic act executed in Louisiana.

B. Any oath, affirmation, deposition, or affidavit executed before any person authorized to act as a notary pursuant to 10 U.S.C. 1044a(b) shall have the same force and effect as if made or executed before a notary in Louisiana.

C. Any testament, trust, or other legal instrument or act provided for in Subsections A and B executed before any person authorized to act as a notary pursuant to 10 U.S.C. 1044a(b) shall have the same force and effect as if made or executed before a notary in Louisiana.

D. The provisions of this Section apply to persons serving in or with the armed forces or the Coast Guard of the United States and other persons eligible for legal assistance under the provisions of 10 U.S.C. 1044 or pursuant to regulations of the Department of Defense and all instruments and acts executed by persons designated in 10 U.S.C. 1044a(a).

Acts 1991, No. 50, §1, eff. June 25, 1991; Acts 1997, No. 1320, §1.

RS 35:8

Recorder's copies of instruments before military officers; effect

§8. Recorder's copies of instruments before military officers; effect

Whenever any original instrument executed pursuant to R.S. 35:7, has been deposited in the office of a parish recorder of this state, the recorder is authorized to make copies of the same which shall have the same force and effect of authentic acts executed in this state.

RS 35:9

Instruments, before ambassadors and consular officials

§9. Instruments, before ambassadors and consular officials

Every mortgage, sale, lease, transfer, assignment, power of attorney, or other instrument, and every oath or affirmation, made or taken in any foreign country, before any ambassador, minister, charge d'affaires, secretary of legation, consul general, consul, vice-consul, or commercial agent, or before one of the following officers commissioned or accredited to act at the place where the act is made or taken, and having an official seal, to wit: any officer of the United States, any notary public, or any commissioner or other agent of this state having power to take acknowledgements, and every acknowledgement, attestation or authentication of such instruments, oaths or affirmations made by any of these officers under their official seals and signatures, shall have the full force and effect of an authentic act executed in this state; and it shall not be necessary that the officer be assisted by two witnesses, as in the case of a notary executing an authentic act in this state, but the attestation, seal and signature of the officer shall of themselves be sufficient; nor shall it be necessary that the person appearing before the officer to execute any of these instruments, or to take any oath or affirmation, be a resident of the place where the officer is located. Whenever any such original instrument, oath, or affirmation has been deposited in the office of a notary in this state, the notary is authorized to make copies of the same, which shall have the same force and effect as copies of authentic acts executed in this state.

Amended by Acts 1980, No. 240, §1.

RS 35:10

Place of executing notarial acts

§10. Place of executing notarial acts

All notarial acts shall be made and executed at any place within the jurisdictional limits of the notary.

Amended by Acts 1974, No. 460, §1.

RS 35:11

Marital status of parties to be given

§11. Marital status of parties to be given

A. Whenever notaries pass any acts they shall give the marital status of all parties to the act, viz: If either or any party or parties are men, they shall be described as single, married, or widower. If married or widower the christian and family name of wife shall be given. If either or any party or parties are women, they shall be described as single, married or widow. If married or widow, their christian and family name shall be given, adding that she is the wife of or widow of . . . the husband's name.

B. A declaration as to one's marital status in an acquisition of immovable property by the person acquiring the property creates a presumption that the marital status as declared in the act of acquisition is correct and, except as provided in Subsection C of this Section, any subsequent alienation, encumbrance, or lease of the immovable by onerous title shall not be attacked on the ground that the marital status was not as stated in the declaration.

C. Any person may file an action to attack the subsequent alienation, encumbrance, or lease on the ground that the marital status of the party as stated in the initial act of acquisition is false and incorrect; however, such action to attack the alienation, encumbrance, or lease shall not affect any right or rights acquired by a third person acting in good faith.

D. The presumption provided in Subsection B of this Section is hereby declared to be remedial and made retroactive to any alienation, encumbrance, or lease made prior to September 1, 1987. Any person who has a right as provided in Subsection C of this Section, which right has not prescribed or otherwise been extinguished or barred upon September 1, 1987 and who is adversely affected by the provisions of Subsection C of this Section shall have six months from September 1, 1987 to initiate an action to attack the transaction or otherwise be forever barred from exercising his right or cause of action.

Amended by Acts 1976, No. 679, §2, eff. Jan. 1, 1977; Acts 1987, No. 467, §1, eff. Sept. 1, 1987.

RS 35:12

Names to be given in full, together with parties' permanent mailing addresses; identification numbers

§12. Names to be given in full, together with parties' permanent mailing addresses; identification numbers

A.(1) Notaries shall insert in their acts the Christian names and surnames of the parties in full and not their initial letters alone or the full names of the parties and not their initial letters alone, together with the permanent mailing addresses of the parties, and shall print or type the full names of the witnesses and of themselves under their respective signatures.

(2) For the purposes of this Section, a full name or a name in full shall include at least one given name and other initials in addition to the surname. It may be any combination of first name and middle initial or initials, if any, and the surname; or the first initial and at least one middle name and the surname; or the complete first and middle name or names and the surname. The notary shall type, print, or stamp his or her name as it appears on his or her commission.

B. Every document notarized in this state shall bear the notary identification number assigned by the secretary of state, except that if the notary is an attorney licensed to practice law in this state, he may use his Louisiana state bar roll number in lieu of his notary identification number. The number shall be typed or printed legibly and placed next to the typed, printed, or stamped name of the notary as required by Subsection A of this Section.

C. No person other than a regularly commissioned notary public shall use the title "Notary Public". Every person, other than a regularly commissioned notary, who is otherwise given notarial powers or authorized as a notary ex officio, shall clearly indicate his actual position or title from which his authority to notarize is derived, in addition to his notary identification number.

D.(1) Any document notarized in this state on or after January 1, 2005, submitted for filing or recording in the office of notarial records, register of conveyances, or recorder of mortgages in and for the parish of Orleans, or in the office of any clerk of court or recorder of mortgages or conveyances may be refused by the clerk or his employee if the document fails to contain the notary identification or attorney bar roll number and the typed, printed, or stamped name of the notary and the witnesses. However, documents filed in the civil or criminal suit records of any court shall not be subject to the provisions of this Subsection.

(2) Except as otherwise provided in this Section, no state office, agency, department, or political subdivision shall accept, file, or record any document notarized in this state on or after January 1, 2005, unless the document contains the notary identification or attorney bar roll number and the typed, printed, or stamped name of the notary and the witnesses.

(3) No office, agency, department, or political subdivision, or any officer or employee thereof, refusing to accept, file, or record any notarized document pursuant to the provisions of this Section shall be liable for any damages resulting from the refusal to accept, file, or record a notarized document for its failure to comply with the provisions of this Section.

Amended by Acts 1950, No. 481, §1; Acts 1954, No. 430, §1; Acts 2003, No. 1142, §1, eff. Jan. 1, 2004; Acts 2004, No. 62, §2; Acts 2004, No. 455, §1.

RS 35:13

Repealed by Acts 1976, No. 384, 1

§13. Repealed by Acts 1976, No. 384, §1

RS 35:14

Disbarred or suspended attorney prohibited from exercising notarial functions

§14. Disbarred or suspended attorney prohibited from exercising notarial functions

Any attorney at law, or person who was an attorney at law, who is disbarred or suspended from the practice of law due to charges filed by the Committee on Professional Responsibility of the Louisiana State Bar Association or who has consented to disbarment shall not be qualified or eligible nor shall he exercise any functions as a notary public in any parish of the state of Louisiana as long as he remains disbarred or suspended from the practice of law in Louisiana. Provided, however, that nothing in this Section shall apply to any action taken against an attorney at law for failure to pay annual dues.

Added by Acts 1976, No. 301, §1.

RS 35:15

Revocation or suspension of notarial commission or authority to exercise notarial powers

§15. Revocation or suspension of notarial commission or authority to exercise notarial powers

A. A notary public who is not an attorney may have his notarial commission and powers revoked or suspended when it is demonstrated, by clear and convincing evidence after a rule to show cause, that the notary has engaged in any of the following:

(1) Dishonesty, fraud, deceit, or misrepresentation.

(2) A felony for which he has been convicted and no pardon has been issued.

(3) Gross misconduct or malfeasance in the exercise of his notarial powers.

(4) Officially certifying as true what he knew or should have known was false.

(5) Violation of any provision of this Title, or any other law governing the office of notary public or the exercise of any notarial power or duty.

(6) Ceasing to possess any qualification required for holding his commission as a notary public.

(7) Abandonment of his commission.

B. The rule to show cause shall be instituted by the district attorney or the attorney general in the district court of either the parish in which the notary is commissioned or the parish where the conduct complained of occurred. Such rule to show cause shall be tried in summary proceeding.

C.(1) If after a hearing the court finds that the notary public was convicted of a felony for which no pardon has been issued, or engaged in an act of gross misconduct or malfeasance in the exercise of his notarial powers, or ceased to possess any qualification required for holding his commission, the court shall order the revocation of the notary's commission and shall prohibit the notary from the further exercise of notarial powers.

(2) If after a hearing the court finds that the notary public committed any other act set forth in Subsection A of this Section, the court may revoke the notary's commission and prohibit the notary from further exercise of notarial powers, or may suspend his commission and authority to exercise notarial powers for a specific period of time, to be determined by the court.

D. A court ordering the revocation of a notary's commission or the suspension of his notarial powers shall further cast the notary in judgment for attorney fees and court costs. The court may additionally order restitution to be paid by the notary public to such persons as the court determines were damaged by the conduct giving rise to the suspension of notarial powers or the revocation of commission.

E. When the rule to show cause is instituted against a person for his actions as an ex-officio notary public, or for his performance of notarial powers on behalf of an employer as authorized by law, then the person appointing the ex-officio notary or the person's employer, as applicable, shall also be named as a defendant and required to show cause why the notarial powers or commission should not be revoked. Any additional defendant named pursuant to this Subsection shall not be cast in judgment for attorney fees, costs, or restitution.

F. The provisions of this Section shall not apply to an attorney licensed to practice law in this state who exercises notarial powers.

Acts 2012, No. 279, §1; Acts 2016, No. 116, §1.

RS 35:16

Administrative revocation of notarial commission or authority

§16. Administrative revocation of notarial commission or authority

A. The secretary of state shall suspend the commission of a notary public who is not an attorney when the notary ceases to be a registered voter in the parish of that notary's commission, or is convicted of a felony. The secretary of state shall send a notice of suspension by certified mail, return receipt requested, to the notary public stating the reasons for his suspension.

B. If the suspension arises from failure of the notary to be registered as a voter in his parish of commission, the notice of suspension shall give the notary public ten days from the date of receipt to register as a voter in the parish of his commission. If the notary public fails to do so, the secretary of state shall notify the attorney general or the district attorney of the parish in which the notary is commissioned for the purpose of instituting a rule to show cause to revoke the commission pursuant to R.S. 35:15.

C. If the suspension arises from conviction of a felony, the period of suspension shall continue until the conviction is final and all appellate review of the original trial court proceedings has been exhausted. If the conviction is reversed upon appeal, or if a pardon is issued for the conviction, the suspension shall terminate and the commission shall be reinstated. When the conviction is final and all appellate review of the original trial court proceedings is exhausted, and if no pardon has been issued, the secretary of state shall notify the attorney general or the district attorney of the parish in which the notary is commissioned for the purpose of instituting a rule to show cause to revoke the commission pursuant to R.S. 35:15.

Acts 2012, No. 279, §1; Acts 2016, No. 116, §1.

RS 35:17

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§17. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 35:71

Requirement of bond; suspension of notarial commissions; renewal of bonds; penalty

CHAPTER 2. BONDS OF NOTARIES PUBLIC GENERALLY

§71. Requirement of bond; suspension of notarial commissions; renewal of bonds; penalty

A. Unless otherwise provided by law, the authority of a notary public to exercise any of the functions of a notary public within his jurisdictional limits shall remain in effect, provided that the notary posts and maintains bond, with good and solvent security, in the amount of fifty thousand dollars conditioned on the faithful performance of all duties required by law toward all persons who may employ him in his official capacity as notary public.

B. All notaries required to post bond shall file their bond with the secretary of state and shall maintain on file with the secretary of state their bond.

C. Any court of competent jurisdiction may suspend the commission of any notary for failure to pay over money entrusted to him in his official capacity as a notary public, for failure to satisfy any final judgment rendered against him in such capacity, or for other just cause.

D.(1) All notaries shall renew their bonds every five years except those notaries who are bonded with a personal surety, as provided in R.S. 35:75. Notaries with a personal surety bond shall renew their bonds upon the death of the personal surety in accordance with the provisions of this Chapter.

(2) All notaries required to renew their bonds shall file the new or renewed bond with the secretary of state as provided in Subsection B of this Section.

E. The commission of any qualified notary, other than a licensed attorney at law, who fails to renew his notarial bond timely or who fails to timely file his new or renewed bond as provided in Paragraph (D)(2) of this Section, shall be automatically suspended, and the notary shall have no authority to exercise any of the functions of a notary public until the required bond is in force and effect, and the bond has been filed with the secretary of state.

F. The secretary of state shall be authorized to promulgate rules and regulations, where necessary, for implementation of this Section, in accordance with the Administrative Procedure Act.[1]

Acts 1989, No. 769, §1, eff. Jan. 1, 1990; Acts 2004, No. 562, §1; Acts 2006, No. 796, §1; Acts 2025, No. 258, §1, eff. Feb. 1, 2026.

[1]R.S. 49:950 et seq.

RS 35:72

Bonds; elimination of requirement

§72. Bonds; elimination of requirement

Notwithstanding any provision of law to the contrary, after August 1, 1988, no notary, who is a licensed attorney at law, shall be required to post a bond of any kind.

Acts 1988, No. 943, §1; eff. Aug. 1, 1988.

RS 35:73

Bond not mortgage until suit filed and notice of lis pendens recorded

§73. Bond not mortgage until suit filed and notice of lis pendens recorded

The official notarial bond, given by any notary public shall not, when recorded as provided by law, operate as a mortgage either against the property of the principal or of the surety or sureties thereon, unless and until a suit has been filed against the notary to recover on the bond, and a notice of lis pendens has been placed of record against the notary in connection with the suit in the parish where the bond is recorded, in which case the bond shall then operate as a mortgage against the property of both the principal and surety, or sureties, thereon

RS 35:74

Inclusion of bonds in mortgage certificates

§74. Inclusion of bonds in mortgage certificates

The clerks of court in preparing mortgage certificates shall not include notarial bonds thereon unless an action has been commenced on the bond and a notice of lis pendens has been filed in connection therewith as provided in R.S. 35:73.

RS 35:75

Substituted notarial bond with personal surety

§75. Substituted notarial bond with personal surety

In all cases where notaries public throughout the state of Louisiana have filed or recorded, or may hereafter file and record, bonds in the offices of the several clerks of court and ex-officio recorder of conveyances and mortgages, and the register of conveyances and mortgages of the parish of Orleans, with any surety company authorized to do business in the state of Louisiana as surety, as permitted by existing laws, may, in lieu of such bonds of any surety company aforesaid, substitute a bond with personal surety acceptable to the presiding judge of the parish for which the notary is commissioned. The Secretary of State shall accept said substituted notarial bond with personal surety in lieu of notarial bond with surety company as surety.

Acts 1952, No. 497, §1.

RS 35:76

Release of surety company upon acceptance of personal surety bond

§76. Release of surety company upon acceptance of personal surety bond

The Secretary of State for the state of Louisiana, upon filing and recordation of a notarial bond with the Secretary of State, with personal surety in lieu of a surety company, shall upon request execute a release of the surety company effective as of the date of the acceptance of the personal surety bond in lieu thereof.

Acts 1952, No. 497, §2.

RS 35:77

Cancellation of surety company bond

§77. Cancellation of surety company bond

Upon presentation of such personal surety bond containing a certificate of its sufficiency by the presiding judge of the parish of the state for which the notary was commissioned, and certificate of approval by the Secretary of State to any clerk of court and ex-officio recorder of conveyances and mortgages, and the register of conveyances and mortgages of the parish of Orleans, the said clerk, register or recorder of mortgages, shall upon application by any interested party cancel and erase in full from the records of his office said notarial bond with surety company as surety now or hereafter recorded in the conveyance or mortgage records of his office.

Acts 1952, No. 497, §3.

RS 35:131

Grant of leave of absence; suspension of prescription

CHAPTER 3. LEAVES OF ABSENCE

§131. Grant of leave of absence; suspension of prescription

A. The secretary of state on behalf of the governor may grant leave of absence to notaries public for a period not exceeding thirty-six months, to date from the day the leave is granted.

B. Absence from the state suspends the running of prescription against the notary.

Acts 1989, No. 497, §1; Acts 2006, No. 423, §1, eff. June 15, 2006.

RS 35:132

Notaries in military service, leave of absence

§132. Notaries in military service, leave of absence

A leave of absence may be granted by the secretary of state on behalf of the governor to any notary public upon his application to the secretary of state in writing certifying that he is a member of the Army, Navy, Marine Corps, or any other branch of the military service of the United States, or of the state of Louisiana, and stating the expiration date of his bond.

Acts 2006, No. 423, §1, eff. June 15, 2006.

RS 35:133

Notaries in military service, period of leave

§133. Notaries in military service, period of leave

The period of the leaves of absence granted in accordance with R.S. 35:132 shall date from the day the leave is granted and shall terminate sixty days after the date of discharge of the notary from the military service of the United States or the state of Louisiana.

Acts 2006, No. 423, §1, eff. June 15, 2006.

RS 35:134

Expiration of bond during military service; renewal

§134. Expiration of bond during military service; renewal

When the notarial bond of a notary public expires during his term of military service, the notary shall have sixty days from the date of his discharge from military service in which to apply for a new bond.

RS 35:191

Appointment; qualifications; examination

CHAPTER 4. APPOINTMENT, QUALIFICATIONS,

AND BONDS OF NOTARIES

§191. Appointment; qualifications; examination

A.(1) Any person may be appointed a notary public in and for the parish in which he resides and in and for any one other parish in which he maintains an office, provided that

he:

(a) Is a resident citizen or alien of this state.

(b) Is eighteen years of age or older.

(c) Reads, writes, speaks, and is sufficiently knowledgeable of the English language.

(d) Has received a high school diploma, has received a diploma for completion of a home study program approved by the State Board of Elementary and Secondary Education, or has been issued a high school equivalency diploma after successfully completing a high school equivalency test approved by the Board of Supervisors of Community and Technical Colleges.

(e) Is not under interdiction or incapable of serving as a notary because of mental infirmity.

(f) Has not been convicted of a felony, or if convicted of a felony, has been pardoned.

(g) Meets the requirements established by law for each commission sought.

(2) Notwithstanding the provisions of Paragraph (A)(1) or Subsection C of this Section, a person validly appointed notary public in the parish of his residence may exercise any and all of the functions of a notary public in all adjacent parishes that have a population of less than forty thousand and in which he or his employer maintains an office, without additional bonding or further application or examination.

(3)(a) A valid notarial commission shall be one that has not been revoked or resigned, and that was issued to a person who, at the time of issuance in accordance with the provisions of this Section, possessed the qualifications for office set forth in Paragraph (A)(1) and Subsection B of this Section, and who is currently possessed of those qualifications.

(b) A validly appointed notary public is a person who currently holds a valid notarial commission.

(c) A notarial commission that has been or is currently suspended by a court of competent jurisdiction as provided by R.S. 35:71(C), or otherwise by operation of law pursuant to R.S. 35:14 or for the failure of the notary to maintain the required bond, or for failure to timely file the annual report as provided by law, shall not, solely for the reason that it is a suspended commission, be deemed an invalid notarial commission.

B. A resident citizen seeking to be appointed notary public in the parish of his residence or possessing a valid notarial commission in and for a parish based on his residence must be a registered voter of that parish.

C. Each applicant, otherwise qualified, may be appointed a notary public in and for a parish upon meeting all of the following conditions:

(1)(a) Submitting an application to the office of the secretary of state together with a certificate establishing his age, residence, location of his office when the applicant seeks to be appointed a

notary based on such office, and location of the office which was the basis for a current appointment as a notary in any other parish, if any.

(b) The application and qualifying process shall be administered by the office of the secretary of state.

(i) The application provided by the office of the secretary of state shall require the applicant to attest to his good moral character, integrity, and sober habits.

(ii) In the event that any of the applicant's answers or responses call into question the applicant's good moral character, integrity, or sober habits, the secretary of state shall submit such application to the district court in the parish for which the appointment is sought for judicial review and approval. If found competent as to character and fitness to serve as a notary public, the court shall issue to the secretary of state an appropriate certificate for the applicant signed by a judge of the court.

(iii) The application shall include the sworn statement of the applicant declaring the information provided therein is true and correct.

(c) The office of the secretary of state shall charge a fee of thirty-five dollars for filing and processing any application to be appointed a notary public provided for in Subparagraph (a) of this Paragraph.

(d) The deadline for the application provided for in Subparagraph (a) of this Paragraph and the application fee provided for in Subparagraph (c) of this Paragraph or to register to take the exam as provided for in R.S. 35:191.1 shall be no later than thirty days prior to the date of the examination.

(2)(a) Taking a pre-assessment test, with no minimum score required, administered by the secretary of state to assess the probability of the applicant passing the examination as provided in R.S. 35:191.1.

(b) To qualify to take the pre-assessment test, the applicant shall have satisfied all requirements to be commissioned as a notary public in the parish, except for passing the examination as provided in R.S. 35:191.1.

(c) The pre-assessment test provided by this Paragraph shall be dispensed with if the applicant has been duly admitted to practice law in this state or holds a valid notarial commission in this state.

(3)(a) Taking and passing a written examination, as provided in R.S. 35:191.1, administered by the secretary of state.

(b)(i) The notary examination shall be given not less than twice per year on the days as determined by the secretary of state.

(ii) To qualify to be examined, the candidate shall have satisfied all requirements to be commissioned as a notary public in the parish, except for passing the examination.

(iii) The qualified candidate shall be permitted to register for any notary public examinations administered by the secretary of state within one year after the date the secretary of state notifies the candidate of his approval to take the examination. No further application fee shall be required during this period. The required examination fee, however, shall be paid for each examination.

(c) The examination provided for in this Paragraph shall be dispensed with if the applicant has been duly admitted to practice law in this state or holds a valid notarial commission in this state.

D. Notwithstanding any other provision of law to the contrary, any person who is validly appointed notary public in and for the parish of Orleans, the parish of St. Bernard, the parish of Plaquemines, or the parish of Jefferson is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of a notary public in the parishes of Orleans, Plaquemines, St. Bernard, and Jefferson.

E.(1) Notwithstanding any other provision of law to the contrary, any person who has held a valid notarial commission in or for any parish either for a period of five years or who has taken and passed the written examination, as provided in R.S. 35:191.1 on or after June 13, 2005, and who changes his residence to another parish, and who complies with the laws governing application and qualifying for appointment to the office of notary public in the parish of his new residence, except taking and passing an examination, and who meets the prerequisites for commission issuance specified in R.S. 35:201, shall be issued a notarial commission for the parish of his new residence by the governor without advice and consent of the Senate and may exercise the functions of notary public in that parish.

(2) A notary who is establishing a residence in a parish other than the parish of his commission and who seeks a commission in the parish of the new residence shall be deemed to be validly commissioned in the parish of his former residence for a period of sixty days, during which time he shall meet all the qualifications for appointment in and for the parish of the new residence. Should such notary desire to remain commissioned in the original parish based on maintaining an office in that parish, he shall file an affidavit to that effect with the secretary of state designating the location of the office and shall otherwise comply with the requirements for maintaining a dual commission as provided for in this Section.

F. Notwithstanding any other provision of law to the contrary, any person who is validly appointed notary public in and for any of the parishes of Tangipahoa, Livingston, or St. Helena is hereby authorized and deemed eligible and qualified to exercise any and all of the functions a notary public in the parishes of Tangipahoa, Livingston, and St. Helena.

G. Notwithstanding any other provision of law to the contrary, any person who is validly appointed notary public in and for any of the parishes of Bienville, Caldwell, East Carroll, Franklin, Jackson, Lincoln, Madison, Morehouse, Ouachita, Richland, Union, or West Carroll is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of a notary public in the parishes of Bienville, Caldwell, East Carroll, Franklin, Jackson, Lincoln, Madison, Morehouse, Ouachita, Richland, Union, or West Carroll.

H. Notwithstanding any other provision of law to the contrary, any person who is validly appointed notary public in and for any of the parishes of Caddo, Bossier, Bienville, DeSoto, Claiborne, or Webster is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of a notary public in the parishes of Caddo, Bossier, Bienville, DeSoto, Claiborne, and Webster. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

I. Notwithstanding any other provision of law to the contrary, any person who is validly appointed notary public in and for either of the parishes of Catahoula or Concordia is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of a notary public in the parishes of Catahoula and Concordia.

J. Notwithstanding any other provision of law to the contrary, any person who is a validly appointed notary public in and for either of the parishes of Iberia or St. Mary is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of a notary public in the parishes of Iberia and St. Mary.

K. Notwithstanding any other provision of law to the contrary, any person who is validly appointed notary public in and for any of the parishes of Allen, Beauregard, Calcasieu, Cameron, Vernon, or Jefferson Davis is hereby authorized and deemed eligible and qualified to exercise any and all functions of a notary public in the parishes of Allen, Beauregard, Calcasieu, Cameron, Vernon, and Jefferson Davis. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

L. Any notary public in and for the parish of Acadia, Lafayette, or Vermilion is hereby authorized and qualified to exercise all of the functions of a notary public in and for any of said parishes. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

M. Any notary public appointed in and for the parish of Iberia or Vermilion is hereby authorized and qualified to exercise any and all functions of a notary public in both parishes. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

N. Any notary public appointed in and for the parish of Ascension, East Baton Rouge, East Feliciana, Iberville, Livingston, Pointe Coupee, West Baton Rouge, or West Feliciana is hereby authorized and qualified to exercise all of the functions of a notary public in and for any of said parishes. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

O. Notwithstanding any other provision of law to the contrary, any person who is validly appointed notary public in and for any of the parishes of Acadia, Evangeline, or St. Landry is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of a notary public in the parishes of Acadia, Evangeline, and St. Landry. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

P.(1)(a) Notwithstanding any other provision of law to the contrary including but not limited to the provisions of Subsection E of this Section and the duties imposed in that Subsection as a result of a change in residence, each person who is licensed to practice law in this state who is a notary public in and for any parish in this state may exercise the functions of a notary public in every parish in this state.

(b) Notwithstanding any other provision of law to the contrary, each person who is a validly appointed notary public in and for any parish in this state and who has taken and passed the written examination, as provided in R.S. 35:191.1 on or after June 13, 2005, may exercise the functions of a notary public in every parish in this state.

(c) The expanded jurisdictional limits authorized by this Subsection are additional to other provisions of law. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

(2) In order to qualify for the expanded jurisdictional limits authorized by this Subsection, any regularly commissioned notary public in and for any parish in this state who is not licensed to practice law in this state and who has not taken and passed the written examination as provided in R.S. 35:191.1 on or after June 13, 2005, may take the examination provided that he register directly with the secretary of state on a form provided for that purpose and pay the examination fee authorized by law no later than forty-five days before the date of a scheduled examination. Failure of such notary to pass the examination shall have no effect on the status of the commission of the notary.

Q. Notwithstanding any other provision of law to the contrary, any person who is validly appointed notary public in and for either of the parishes of Lafayette or St. Landry is hereby authorized and qualified to exercise all of the functions of a notary public in and for both parishes. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

R. Notwithstanding any other provision of law to the contrary, any person who is a validly appointed notary public in and for any of the parishes of Iberia, St. Martin, or St. Mary is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of a notary

public in the parishes of Iberia, St. Martin, and St. Mary. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

S. Notwithstanding any other provision of law to the contrary, any person who is a validly appointed notary public in and for the parish of Sabine, Natchitoches, Red River, Bienville, Winn, or Vernon is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of a notary public in the parish of Sabine, Natchitoches, Red River, Bienville, Winn, or Vernon. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

T. Notwithstanding any other provision of law to the contrary, any person who is a validly appointed notary public in and for any of the parishes of Avoyelles, Grant, or Rapides is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of a notary public in the parishes of Avoyelles, Grant, and Rapides. No additional bonding or further application or examination shall be required due to the expanded jurisdictional limits authorized by this Subsection.

U. Notwithstanding any other provision of law to the contrary, any person who is validly appointed notary public in and for the parish of St. Mary, the parish of Assumption, the parish of Lafourche, or the parish of Terrebonne is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of notary in the parishes of St. Mary, Assumption, Lafourche, and Terrebonne.

V. Notwithstanding any other provision of law to the contrary, any person who is validly appointed notary public in and for the parish of St. Martin or the parish of St. Landry is hereby authorized and deemed eligible and qualified to exercise any and all of the functions of a notary public in the parishes of St. Martin and St. Landry. No additional bonding or further application or examination shall be required because of the expanded jurisdictional limits authorized by this Subsection.

W. Repealed by Acts 2019, No. 9, §2, eff. May 24, 2019.

Amended by Acts 1992, No. 396, §1; Acts 1992, No. 996, §1; Acts 1995, No. 333, §1; Acts 1995, No. 439, §1; Acts 1995, No. 1028, §§1, 2; Acts 1997, No. 1320, §1; Acts 2003, No. 926, §1; Acts 2003, No. 1142, §1, eff. Jan. 1, 2004; Acts 2004, No. 562, §1; Acts 2004, No. 754, §1, eff. Jan. 1, 2005; Acts 2005, No. 84, §1; Acts 2006, No. 423, §1, eff. June 15, 2006; Acts 2006, No. 793, §1; Acts 2006, No. 796, §1; Acts 2007, No. 157, §1; Acts 2008, No. 856, §1; Acts 2008, No. 904, §1, eff. July 10, 2008; Acts 2012, No. 279, §1; Acts 2012, No. 492, §1; Acts 2012, No. 829, §1, eff. Jan. 1, 2013; Acts 2014, No. 610, §1, eff. June 12, 2014; Acts 2015, No. 181, §1; Acts 2018, No. 145, §1, eff. May 15, 2018; Acts 2019, No. 9, §§1, 2, eff. May 24, 2019; Acts 2025, No. 40, §1; Acts 2025, No. 258, §1, eff. Feb. 1, 2026.

RS 35:191.1

Secretary of state; uniform statewide standards, rules, and procedures for notarial examinations

§191.1. Secretary of state; uniform statewide standards, rules, and procedures for notarial examinations

A. The secretary of state shall, with the advice and assistance of the courts and such subject matter experts as the secretary of state may request, develop uniform statewide standards for notarial examinations required by R.S. 35:191(C), which shall be administered at regional testing centers by the secretary of state. The standards developed shall include all of the following:

(1) The procedures and rules for administering and grading the examination for applicants required to take an examination.

(2) The format and content of the examination.

(3) The procedures for review by the secretary of state of any examination which was taken pursuant to R.S. 35:191(C) and which was failed by the examinee.

B. The secretary of state shall also:

(1) Charge a fee of one hundred dollars for each examinee taking an examination.

(2) Publish and make available to the public a document containing the material and sources from which examination questions are devised for use as a study guide and charge a fee of one hundred dollars.

C. The secretary of state is authorized to develop, with the advice and assistance of academically credentialed education professionals, a notary education program for the formal education of candidates for a notary commission.

Acts 2003, No. 1142, §1, eff. Jan. 1, 2004; Acts 2004, No. 754, §§1, 2, eff. Jan. 1, 2005; Acts 2006, No. 423, §1, eff. June 15, 2006; Acts 2012, No. 279, §1; Acts 2016, No. 438, §1, eff. June 9, 2016.

RS 35:191.2

Secretary of state; authority; duties

§191.2. Secretary of state; authority; duties

The secretary of state shall:

(1) Develop a system for compiling and maintaining a current and accurate database of all notaries in this state and assign to each notary a unique "notary identification number".

(2) Develop the annual report form and mail by United States Postal Service, or provide by electronic means, the annual report form:

(a) To all notaries required to submit an annual report pursuant to R.S. 35:202(A), at least sixty days prior to the anniversary of the date each notary received his commission, commencing with anniversaries occurring on January 1, 2004.

(b) To all offices, agencies, departments, and political subdivisions required to submit an annual report pursuant to R.S. 35:202(D) on May first of each year, commencing on May 1, 2004.

(3) Collect a fee for receiving and processing the annual report of each notary, not to exceed twenty-five dollars per report.

(4) Publish a list of all fees charged by the secretary of state pursuant to this Title in the Louisiana Register.

Acts 2003, No. 1142, §1, eff. Jan. 1, 2004; Acts 2012, No. 279, §1; Acts 2013, No. 220, §13, eff. June 11, 2013.

RS 35:191.3

Notary change of address; duty to register

§191.3. Notary change of address; duty to register

A. It shall be the duty of every notary public or other person authorized to exercise notarial functions in the state to whom the secretary of state has issued a notary identification number to notify the office of the secretary of state within sixty days after the date of any change in residential address, mailing address, or both.

B. The secretary of state shall include notice of this requirement on its notary annual report form.

Acts 2008, No. 856, §1

RS 35:191.4

Secretary of state; procedures for registration and reporting of notary instructors

§191.4. Secretary of state; procedures for registration and reporting of notary instructors

A.(1) The secretary of state shall develop and administer a program to provide for the registration and reporting of persons who provide notary examination preparatory education and instruction.

(2) As used in this Section, a "provider" shall mean any person who provides a course or courses of instruction or study for the training and instruction of persons preparing for the Louisiana notary public examination required for the office of notary public and who charges a fee to any consumer for such service.

B. Beginning February 28, 2015, each person who provides notary examination preparatory education and instruction shall be required to be a commissioned notary public with statewide notarial authority.

C. Each provider shall submit an annual registration statement to the secretary of state on or before January first of each year beginning January 1, 2010. The secretary of state shall provide the form to be used for registration with the secretary of state and all registrations shall be submitted on the form provided by the secretary of state.

D. Each provider, except an educational institution that operates under the oversight of the Board of Regents, Board of Supervisors for the University of Louisiana System, Board of Supervisors of Louisiana State University and Agricultural and Mechanical College, Board of Supervisors of Southern University and Agricultural and Mechanical College, or Board of Supervisors of Community and Technical Colleges, shall annually post a bond guaranteed by a commercial surety licensed to do business in this state with the secretary of state in the amount of twenty-five thousand dollars. The bond shall be to ensure the performance of the provider's obligation to deliver any educational services contracted for and shall remain in effect for a period of one year.

E.(1) The secretary of state may impose a penalty of not more than one thousand dollars per day against a provider who is not in compliance with the requirements of this Section.

(2) If a penalty imposed under the provisions of this Section is not timely paid by a provider within thirty days of imposition of the penalty by the secretary of state, the attorney general shall institute proceedings against the provider to collect such penalty.

F. Each provider shall be exempt from the licensing requirements of R.S. 17:3140.1 et seq., pertaining to such educational programs or instruction.

G. The secretary of state may establish and require an annual professional development and education program for providers.

H. The secretary of state may promulgate rules and regulations, where necessary, for implementation of the provisions of this Section, in accordance with the Administrative Procedure Act.

I. Repealed by Acts 2021, No. 24, §2, eff. June 1, 2021.

Acts 2009, No. 80, §1; Acts 2012, No. 279, §1; Acts 2021, No. 24, §§ 1, 2, eff. June 1, 2021.

RS 35:192

Execution and recordation of bond; filing of certificate of competency

§192. Execution and recordation of bond; filing of certificate of competency

A. The bond required of notaries by R.S. 35:71 shall be filed in the office of the secretary of state. The bond shall be subscribed in favor of the governor and if a special mortgage or secured by personal surety, recorded in the mortgage office of the parish.

B. The provisions of Subsection A of this Section shall not affect the validity of bonds given or recorded in the mortgage or conveyance office of any parish prior to September 9, 1977.

C. Notwithstanding any provisions of law to the contrary, in all cases where a notary furnishes a bond signed by a surety company authorized to do business in this state, it shall not be necessary to record the bond with the clerk of court or have the bond approved by the clerk of court.

Amended by Acts 1977, No. 451, §1; Acts 2012, No. 279, §1; Acts 2025, No. 258, §1, eff. Feb. 1, 2026.

RS 35:193

Original surety company bond; necessity for recordation

§193. Original surety company bond; necessity for recordation

In all cases where notaries public furnish bond for the faithful performance of their duties, signed by a surety company, authorized to do business in this state, it shall not be necessary to record the bond in the office of the recorder of mortgages of the parish where the notary performs his duties, and in all cases, when existing bonds or future bonds of this character are filed and recorded in the mortgage office, they shall not operate as mortgages upon the property of the principal.

Amended by Acts 1977, No. 451, §1.

RS 35:194

Substitution of personal surety bond or special mortgage

§194. Substitution of personal surety bond or special mortgage

In all cases where notaries public throughout the state have filed or recorded bonds in the offices of the several clerks of court and ex officio recorders of mortgages, with personal or individual surety, or who have executed and recorded a special mortgage on immovable property, as permitted by existing law, may, in lieu of such bonds, and in lieu of such special mortgages, substitute a bond in the same sum with any surety company authorized to do business in the state as surety.

Amended by Acts 1977, No. 451, §1.

RS 35:195

Cancellation of personal surety bond or special mortgage

§195. Cancellation of personal surety bond or special mortgage

Upon presentation of the surety bond provided for in R.S. 35:194 to any clerk of court and ex-officio recorder of mortgages, the clerk shall file the bond, and upon application by any interested party, shall cancel and erase in full from the records of his office any bond with personal surety recorded in the mortgage records of his office, and likewise any special mortgage executed and recorded by any notary public, conditioned for the faithful performance of his duties as notary.

RS 35:196

Substituted surety company bond; necessity for recordation

§196. Substituted surety company bond; necessity for recordation

The surety bond provided for in R.S. 35:194 shall not be recorded in the mortgage records of the clerks of court and ex-officio recorders of mortgages and shall not in any event be an encumbrance against the property of any notary making and executing such bond.

RS 35:197

Repealed by Acts 1977, No. 451, 3

§197. Repealed by Acts 1977, No. 451, §3

RS 35:198

Liability of notary and surety; effect of surety company bond; cancellation of bond for nonpayment

§198. Liability of notary and surety; effect of surety company bond; cancellation of bond for nonpayment

A. Nothing contained in R.S. 35:193 shall in any way affect the liability of a notary for the failure to perform his duties, nor the liability of his surety for any neglect thereof, or in any way alter the requirements of the recording of bonds not signed by a surety company, or their legal effect when so recorded.

B. When the notary in Orleans Parish has given bond with a surety company, the surety has the right to cancel the bond for nonpayment of the premium by giving notice through registered mail to the custodian of notarial records for the parish of Orleans. This notice must be given thirty days prior to any anniversary date of the bond, after which anniversary date the liability of the surety company on the bond shall cease.

Amended by Acts 1977, No. 451, §1.

RS 35:199

Duty to file, register, or record notarial instruments

§199. Duty to file, register, or record notarial instruments

A. Notaries public shall record all acts of sale, exchange, donation, and mortgage of immovable property passed before them, together with all resolutions, powers of attorney, and other documents annexed to or made part of the acts, in their proper order, and after first making a careful record of the acts in record books to be kept for that purpose as follows:

(1) If the immovable is located in this state outside of the parish of Orleans, the notary shall record the instrument within fifteen days after they are passed, with the appropriate recorder of the parish or parishes in which the immovable property is situated.

(2)(a) If the immovable is situated within the parish of Orleans, the notary shall file the instrument in the office of the custodian of notarial records for the parish of Orleans and record the instrument with the register of conveyances or recorder of mortgages or both.

(b) If the instrument is an act of sale or any other act evidencing a transfer of immovable property situated in the parish of Orleans, it shall be the duty of the notary to cause the act to be registered with the office of the clerk as the recorder for the parish of Orleans, within forty-eight hours after the passage of the act.

(c) The original of every authentic act, except chattel mortgages and acts relating to immovable property outside of Orleans Parish, passed before a notary public in Orleans Parish, and also every act, contract, and instrument except money judgments and chattel mortgages filed for record in the offices of either the recorder of mortgages or the registrar of conveyances for the parish of Orleans, shall, as a condition precedent to such filing in the office of the recorder of mortgages or the register of conveyances for the parish of Orleans, be first filed in the notarial archives of the parish of Orleans.

B. The provisions of Subsection A of this Section shall not be applicable to instruments affecting cemetery plots and shall not be so construed as embracing inventories or partitions or any other act required by law to be performed by notaries or parish recorders under any order of court, but the original of all such acts, without being recorded, shall be returned to the court from which the order is issued.

C. All notaries who contravene the provisions of this Section shall be subject to a fine of two hundred dollars for each infraction of the same, to be recovered before any court of competent jurisdiction, one-half for the benefit of the informer, as well as all such damages as the parties may suffer thereby.

D. A notary public shall be relieved of his obligations under Paragraph (A)(1) and Subparagraph (A)(2)(a) of this Section when he has been expressly directed in writing by all parties to the instrument to defer or refrain from such recordation or to deliver the instruments to one of the parties or to another person.

Acts 2006, No. 730, §1; Acts 2008, No. 677, §1, eff. July 1, 2008; Acts 2008, No. 856, §1; Acts 2010, No. 537, §2, eff. Jan. 1, 2011.

RS 35:200

Limitation on actions

§200. Limitation on actions

A. No action for damages against any notary public duly commissioned in any parish in this state, any partnership of such notaries public, or any professional corporation, company, organization, association, enterprise, or other commercial business or professional combination answerable for the damage occasioned by such notary public in the exercise of the functions of a notary public, whether based upon tort, or breach of contract, or otherwise, arising out of an engagement to provide notarial services shall be brought unless filed in a court of competent jurisdiction and proper venue within one year from the date of the alleged act, omission, or neglect, or within one year from the date that the alleged act, omission, or neglect is discovered or should have been discovered; however, even as to actions filed within one year from the date of such discovery, in all events such actions shall be filed at the latest within three years from the date of the alleged act, omission, or neglect.

B. The provisions of this Section are remedial and apply to all causes of action without regard to the date when the alleged act, omission, or neglect occurred. However, with respect to any alleged act, omission, or neglect occurring prior to July 1, 2004, actions shall, in all events, be filed in a court of competent jurisdiction and proper venue on or before July 1, 2007, without regard to the date of discovery of the alleged act, omission, or neglect. The one-year and three-year periods of limitation provided in Subsection A of this Section are peremptive periods within the meaning of Civil Code Article 3458 and, in accordance with Civil Code Article 3461, may not be renounced, interrupted, or suspended.

C. Notwithstanding any other law to the contrary, in all actions brought in this state against any notary public duly commissioned in this state, any partnership of such notaries public, or any professional corporation, company, organization, association, enterprise, or other commercial business or professional combination answerable for the damage occasioned by such notary public in the exercise of the functions of a notary public, the prescriptive and peremptive period shall be governed exclusively by this Section.

D. The provisions of this Section shall apply to all persons whether or not infirm or under disability of any kind and including minors and interdicts.

E. The peremptive period provided in Subsection A of this Section shall not apply in cases of fraud, as defined in Civil Code Article 1953.

F. The provisions of this Section shall not apply to notaries who are attorneys, who shall be subject to the provisions of R.S. 9:5605.

Added by Acts 1977, No. 451, §2; Acts 2004, No. 77, §1, eff. May 28, 2004.

RS 35:201

Granting of commission; prerequisites

§201. Granting of commission; prerequisites

A. Before the governor shall issue to the applicant a commission of notary public for any parish, he shall require of him the production of all of the following:

(1) The certificate provided by R.S. 35:191(C)(1)(b)(ii), if applicable.

(2) His oath of office.

(3) His bond, properly executed, approved, and registered as provided in R.S. 35:71.

(4) His official signature.

B. Upon the issuing of the commission, all of the above shall be deposited in the office of the secretary of state and annexed in the margin of a book to be kept for that purpose by the secretary of state.

C. Notwithstanding any other provision of law to the contrary, an appointment to the office of notary public that requires the advice and consent of the Senate shall be an interim appointment subject to Senate confirmation as follows:

(1) If the legislature is in regular session at the time the appointment is made, the secretary of state on behalf of the governor shall submit for Senate confirmation the name of a qualified appointee within forty-eight hours after the appointment is made. Failure of the Senate to confirm the appointment prior to the end of the session shall constitute a rejection of the appointment and the interim appointment shall terminate.

(2) If the legislature is not in regular session at the time the appointment is made, the appointment shall expire at the end of the next regular session, unless the Senate confirms the appointment during that session.

(3) Any person whose appointment is not confirmed by the Senate shall not be appointed to the office of notary public in any parish during any recess of the legislature.

(4)(a) Notwithstanding any other provision of this Section to the contrary, if it is discovered prior to the time that the appointment is submitted to the Senate for confirmation that the interim appointee to hold the office for which a commission has been issued does not meet the qualifications for appointment, the secretary of state on behalf of the governor shall notify the appointee by certified mail that the appointee will not be submitted for Senate confirmation until the appointee meets the qualifications for appointment. The appointee shall thereafter exercise no notarial duties or functions until the appointee meets the qualifications for appointment. If the appointee fails to meet the qualifications for appointment and the appointment terminates or expires as provided in this Subsection, the commission shall be rescinded and the appointee shall surrender his commission to the secretary of state.

(b) Notwithstanding any other provision of this Section to the contrary, if it is discovered after the appointment has been submitted to the Senate for confirmation, that the interim appointee to hold the office for which a commission has been issued does not meet the qualifications for appointment, the secretary of state on behalf of the governor shall notify the appointee by certified mail that the appointee does not meet the qualifications for appointment. The appointee shall thereafter exercise no notarial duties or functions until the appointee meets the qualifications for appointment. If the appointee fails to meet the qualifications for appointment and the appointment terminates or expires as provided herein, the commission shall be rescinded and the appointee shall surrender his commission to the secretary of state.

Added by Acts 1977, No. 451, §2; Acts 2004, No. 562, §1; Acts 2008, No. 856, §1; Acts 2025, No. 258, §1, eff. Feb. 1, 2026.

RS 35:202

Annual report; filing fee; penalties; suspension

§202. Annual report; filing fee; penalties; suspension

A. Except as provided in Subsection F of this Section, all regularly commissioned non-attorney notaries shall file an annual report with the secretary of state on or before the anniversary date of his commission on the form developed and mailed, or provided by electronic means, by the secretary of state pursuant to R.S. 35:191.2(2)(a), together with payment of the filing fee established by the secretary of state pursuant to R.S. 35:191.2(3). The annual report shall be completed in full and signed by the notary.

B. Except as provided in Subsection F of this Section, a notary who fails to timely file the required annual report and pay the filing fee pursuant to Subsection A of this Section shall be assessed a late fee not to exceed fifty dollars by the secretary of state.

C. The commission of any notary who fails to timely file his fully completed annual report within sixty days after its due date as provided in Subsection A of this Section shall be automatically suspended, and the notary shall have no authority to exercise any of the duties or functions of a notary public until a current required annual report has been filed, and the notary has paid all accrued fees and late charges for a period not to exceed three years in connection with the suspension of his commission.

D. All offices, agencies, and departments of the state and political subdivisions with authority to appoint certain persons as ex officio notaries or otherwise authorize persons to exercise any notarial powers pursuant to the revised statutes and codes of this state shall file an annual report on the form developed and mailed, or provided by electronic means, by the secretary of state pursuant to R.S. 35:191.2(2)(b), not later than the first day of July of each year.

E. The secretary of state shall send by certified mail to any office, agency, department of the state, or political subdivision of the state which fails to timely file the required annual report within the delays provided by Subsection D of this Section a notice of such failure to timely file the required report. The authority of a person appointed as an ex officio notary or otherwise authorized by the revised statutes and codes of this state to exercise the function of a notary public and the authority of any office, agency, department of the state, or political subdivision of the state to appoint ex officio notaries or to otherwise authorize persons to exercise notarial functions shall be suspended if the annual report is not filed within sixty days as provided in this Section.

F. A notary granted a leave of absence by the governor pursuant to R.S. 35:131 or 132 shall not be subject to the fees or penalties established by Subsection A, B, or C of this Section during the term of his leave of absence. However, a notary granted a leave of absence shall provide the secretary of state with a current address during such leave.

G. A regularly commissioned non-attorney notary who is seventy years of age or older shall be permitted to elect a special commission status upon retirement from active service as a notary public by filing with the secretary of state a written request for such status along with an affidavit attesting to such status and certifying that he will no longer exercise the duties and functions of a notary public during such time as such status is in effect. A notary with such inactive status shall not be required to maintain a bond or file an annual report. However, a notary granted inactive status shall notify the secretary of state of any change of address to ensure the accuracy of information contained in the notary database maintained by the secretary of state. A notary may resume active commission status by filing a current annual report with the required fees with the secretary of state and posting bond in the amount then required by law.

Acts 2003, No. 1142, §1, eff. Jan. 1, 2004; Acts 2004, No. 206, §1, eff. June 14, 2004.

CHAPTER 5. NOTARIES IN ORLEANS PARISH

PART I. APPOINTMENT, BOND, AND OFFICE [REPEALED]

§251. §§251 to 257 Repealed by Acts 1977, No. 451, §3

RS 35:282

Repealed by Acts 2006, No. 730, §2.

§282. Repealed by Acts 2006, No. 730, §2.

RS 35:283

Repealed by Acts 2006, No. 730, §2.

§283. Repealed by Acts 2006, No. 730, §2.

RS 35:284

Repealed by Acts 2006, No. 730, §2.

§284. Repealed by Acts 2006, No. 730, §2.

RS 35:285

Repealed by Acts 2006, No. 730, §2.

§285. Repealed by Acts 2006, No. 730, §2.

RS 35:286

Repealed by Acts 2006, No. 730, §2.

§286. Repealed by Acts 2006, No. 730, §2.

RS 35:287

Deputies

§287. Deputies

Every notary public in the Parish of Orleans may appoint one or more deputies to assist him in the making of protests and delivery of notices of protests of bills of exchange and promissory notes. Each notary shall be personally responsible for the acts of each deputy employed by him. Each deputy shall take an oath faithfully to perform his duties as such. The certificate of notice of protest shall state by whom made or served.

RS 35:321

Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

PART III

OFFICE AND CUSTODIAN OF NOTARIAL RECORDS

§321. Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

RS 35:322

Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

§322. Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

RS 35:323

Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

§323. Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

RS 35:323.1

Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

§323.1. Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

RS 35:324

Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

§324. Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

RS 35:325

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§325. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 35:326

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§326. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 35:327

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§327. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 35:328

Repealed by Acts 2007, No. 212, §1, eff. July 1, 2007.

§328. Repealed by Acts 2007, No. 212, §1, eff. July 1, 2007.

RS 35:329

Repealed by Acts 1997, No. 1102, 2.

§329. Repealed by Acts 1997, No. 1102, §2.

RS 35:330

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§330. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 35:331

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§331. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 35:332

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§332. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 35:333

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§333. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 35:334

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§334. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 35:335

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§335. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 35:336

Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

§336. Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

RS 35:337

Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

§337. Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

RS 35:337.1

Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

§337.1. Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

RS 35:338

Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

§338. Repealed by Acts 2006, No. 621, §20(A), eff. Jan. 1, 2009.

RS 35:391

Ex officio notaries; qualifications

CHAPTER 6. EX OFFICIO NOTARIES

§391. Ex officio notaries; qualifications

Any person may be appointed an ex officio notary as authorized in this Chapter, provided he:

(1) Is a resident citizen or alien of the state.

(2) Is eighteen years of age or older.

(3) Is able to read, write, and speak the English language and be possessed of sufficient knowledge of the English language.

(4) Is not under interdiction or incapable of serving as an ex officio notary because of a mental infirmity.

(5) Is not under indictment for a felony and has not been convicted of a felony for which he has not been pardoned.

(6) Has given bond, with good and solvent security, in the sum of fifty thousand dollars conditioned for the faithful performance of all duties required by law toward all persons who may employ him in his profession of ex officio notary.

(7) In the case of a state employee who serves as an ex officio notary in the course and scope of his employment, records his oath of office with the secretary of state.

Acts 1990, No. 290, §1, eff. Jan. 1, 1991; Acts 1992, No. 623, §1; Acts 1993, No. 877, §1; Acts 2003, No. 926, §1; Acts 2025, No. 258, §1, eff. Feb. 1, 2026.

RS 35:392

Ex officio notaries; bond; oath

§392. Ex officio notaries; bond; oath

A. The bond required of all ex officio notaries, except those state employees who serve as ex officio notaries in the course and scope of their employment, shall be submitted to the clerk of court and ex officio recorder of mortgages for the parish where the ex officio notary will exercise the functions of his office, as well as filed in the office of the secretary of state. The bond shall be subscribed in favor of the governor; approved by the clerk, except in Orleans Parish; and if secured by personal surety, recorded in the mortgage office of the parish in a special book kept for bonds required of all notaries. In Orleans Parish, the bond shall be approved by the custodian of notarial records. The bond for state employees who serve as ex officio notaries shall be maintained in the division of administration, office of risk management.

B. The provisions governing the recordation of bonds issued by surety companies doing business in the state, the substitution and cancellation of personal surety bonds or special mortgages, the filing of substituted surety company bonds, the liability of notaries and sureties, and the limitation of actions against sureties, R.S. 35:193 through 200, shall apply to bonds issued for the faithful performance of the duties of ex officio notaries.

C. No ex officio notary who holds such office by virtue of duties affiliated with employment with a political subdivision of the state shall be required to file his or her oath of office as notary with any parish clerk of court.

Acts 1990, No. 290, §1, eff. Jan. 1, 1991; Acts 1992, No. 623, §1; Acts 1993, No. 877, §1.

RS 35:392.1

Ex officio notaries

§392.1. Ex officio notaries

A. Any person, not a regularly commissioned notary, who is an ex officio notary, or who is otherwise authorized under the various revised statutes and codes of this state to administer oaths or exercise any or all of the functions, powers, and authority of a notary, is authorized to perform those functions, powers, and authority only as they are directly related to and required for the operation of the office, agency, or department under which the authority is granted. All acts which are performed beyond the specific authority granted in the various statutes and codes of this state to administer oaths and to perform the functions, powers, and authority of a notary and which are not directly related to or required for the operation of the office, agency, or department shall be null and void.

B. The provisions of this Section shall not be applicable to documents notarized by a clerk of court or any of the deputy clerks of court who are employees of the clerk of court when such documents are notarized within the course and scope of their employment with the office of clerk of court. However, nothing in this Section shall prohibit such clerks and deputy clerks from notarizing vehicle titles or acknowledging the signatures on authentic acts even if such authentic acts are not within the course and scope of their employment.

Acts 2003, No. 1142, §1, eff. Jan. 1, 2004; Acts 2004, No. 62, §2; Acts 2005, No. 64, §1, eff. June 16, 2005.

RS 35:393

Ex officio notaries public for the Department of Public Safety and Corrections; powers

§393. Ex officio notaries public for the Department of Public Safety and Corrections; powers

A. Notwithstanding any provisions in the law relative to qualifications for and limitations on the number of notaries public, the governor is authorized to appoint, upon recommendation by the secretary of the Department of Public Safety and Corrections, the supervisors of each troop headquarters, any investigator of the internal affairs unit of the office of state police in the Department of Public Safety and Corrections, and the executive assistant to the general counsel of the Department of Public Safety and Corrections as ex officio notaries public who shall perform the duties provided hereunder without charge or other compensation. Any ex officio notary public appointed under the provisions of this Section shall possess those notarial powers as provided by law to administer oaths and take acknowledgments.

B. Additionally, specially designated commissioned Louisiana state police officers assigned to intelligence, detectives, narcotics, or internal affairs, specially designated commissioned officers of the office of the state fire marshal, and commissioned agents of the office of alcohol and tobacco control shall have the power to administer oaths and receive sworn statements, in connection with their official duties.

Added by Acts 1977, No. 465, §1. Amended by Acts 1981, No. 810, §1; Acts 1982, No. 540, §1; Acts 1984, No. 873, §1; Acts 1990, No. 290, §2, eff. Jan. 1, 1991; Acts 2014, No. 171, §1.

RS 35:393.1

Ex officio notaries public for the Department of Public Safety and Corrections; appointment by secretary

§393.1. Ex officio notaries public for the Department of Public Safety and Corrections; appointment by secretary

A. Notwithstanding any provision in the law relative to qualifications for and limitations on the number of notaries public, the secretary of the Department of Public Safety and Corrections is authorized to designate officers in his office and appoint them as ex officio notaries public.

B. Each officer so appointed may exercise the functions of a notary public only to administer oaths, receive sworn statements, and shall otherwise be limited to matters within the official functions of the Department of Public Safety and Corrections.

C. All acts performed by such an ex officio notary public authorized by this Section shall be performed without charge or other compensation and without the necessity of giving bond.

D. The secretary may suspend or terminate any appointment made pursuant to this Section at any time, and separation from the employ of the Department of Public Safety and Corrections shall automatically terminate the powers of such an ex officio notary public.

Acts 1991, No. 36, §1.

RS 35:394

Ex officio notaries public for the Department of Justice

§394. Ex officio notaries public for the Department of Justice

A. Notwithstanding any provisions of the law relative to qualifications for and limitations on the number of notaries public, the governor is authorized to appoint, upon recommendation by the attorney general, investigators in the Department of Justice as ex officio notaries public. Each ex officio notary public appointed under the provisions of this Section shall be submitted to the Senate for confirmation.

B. Such an ex officio notary public may exercise the functions of a notary public only to administer oaths and receive sworn statements and shall otherwise be limited to matters within the official functions of the Department of Justice.

C. All acts performed by such an ex officio notary public authorized by this Section shall be performed without charge or other compensation.

D. The attorney general may suspend or terminate any appointment made pursuant to this Section at any time, and separation from the employ of the Department of Justice shall automatically terminate the powers of such an ex officio notary public.

Added by Acts 1982, No. 525, §1; Acts 1990, No. 290, §2, eff. Jan. 1, 1991.

RS 35:395

Ex officio notaries public for the Department of State

§395. Ex officio notaries public for the Department of State

A. Notwithstanding any provisions of the law relative to qualifications for notaries public, the secretary of state is authorized to appoint not more than six essential employees within the Department of State as ex officio notaries public.

B. Such ex officio notaries public may exercise the functions of a notary public only to administer oaths and receive sworn statements and shall be limited to matters within the official functions of the Department of State. They shall use the official seal of the department.

C. All acts performed by such ex officio notaries public authorized by this Section shall be performed without charge or other compensation.

Acts 1985, No. 226, §1; Acts 1990, No. 290, §2, eff. Jan. 1, 1991.

RS 35:396

Ex officio notaries public for Department of Insurance

§396. §396. Ex officio notaries public for Department of Insurance

A. Notwithstanding any provisions of law relative to qualifications for notaries public, except R.S. 35:391, the commissioner of insurance may appoint not more than six employees of the Department of Insurance as ex officio notaries public.

B. Such ex officio notaries public may exercise the functions of a notary public only to administer oaths and receive sworn statements and shall be limited to matters within the official functions of the Department of Insurance. They shall use the official seal of the department.

C. All acts performed by an ex officio notary public authorized by this Section shall be performed without charge or other compensation.

D. The commissioner of insurance may suspend or terminate any appointment made pursuant to this Section at any time, and separation from the employ of the Department of Insurance shall terminate the powers of the ex officio notary public.

Acts 2016, No. 363, §1, eff. June 5, 2016.

RS 35:397

Ex officio notaries public for the Louisiana State Racing Commission

§397. Ex officio notaries public for the Louisiana State Racing Commission

A. Notwithstanding any provisions of the law relative to qualifications for notaries public, the governor, upon the recommendation of the chairman of the Louisiana State Racing Commission, shall appoint not more than two of its employees at each racing commission office as ex officio notaries public.

B. Such ex officio notaries public may exercise the functions of a notary public only to administer oaths and receive sworn statements and shall be limited to matters within the official duties of R.S. 4:150(B)(11).

C. All acts performed by such ex officio notary public authorized by this Section shall be performed without charge or other compensation.

D. The provisions of this Section shall not cause any additional cost to the state.

Acts 1987, No. 495, §2; Acts 1990, No. 290, §2, eff. Jan. 1, 1991.

RS 35:398

Ex officio notaries for district attorneys

§398. Ex officio notaries for district attorneys

A. Notwithstanding any provisions of the law relative to qualifications for and limitations on the number of notaries public, each district attorney may designate an investigator in his office as administrative assistant and appoint him as an ex officio notary public.

B. Such an ex officio notary public may exercise, in the judicial district which the district attorney serves, the functions of a notary public only to administer oaths and execute affidavits, acknowledgments, and other documents, all limited to matters within the official functions of the office of district attorney.

C. Such ex officio notary public shall fulfill the same bond requirements as provided by law in the parish or parishes comprising the district which the district attorney serves, provided the total amount of the bond shall not exceed the amount required to exercise the functions of notary public in a single parish.

D. All acts performed by such an ex officio notary public authorized by this Section shall be performed without charge or other compensation.

E. The district attorney may suspend or terminate an appointment made pursuant to this Section at any time, and separation from the employ of the district attorney shall automatically terminate the powers of such an ex officio notary public.

F. The district attorney shall pay as an expense of his office the costs of the notarial seal, the notarial bond, and any fees required for filing the bond.

Added by Acts 1979, No. 335, §1. Amended by Acts 1979, No. 506, §2, eff. July 13, 1979; Acts 1990, No. 290, §2, eff. Jan. 1, 1991.

RS 35:399

Repealed by Acts 2005, No. 55, §2.

§399. Repealed by Acts 2005, No. 55, §2.

RS 35:400

Ex officio notaries public for the United States Forest Service

§400. Ex officio notaries public for the United States Forest Service

A. Notwithstanding any provisions of the law relative to qualification for and limitations on the number of notaries public, the governor is authorized to appoint, upon recommendation by the Forest Supervisor, realty specialists in the United States Forest Service as ex officio notaries public.

B. This ex officio notary public may exercise the functions of a notary public only to administer oaths and execute affidavits, acknowledgments, and other documents, all limited to matters within the official functions of his employment with the United States Forest Service.

C. All acts performed by an ex officio notary public authorized by this Section may be performed in any parish where national forest lands are administered, and shall be performed without charge or other compensation.

D. Separation from the employ of the United States Forest Service shall automatically terminate the powers of this ex officio notary public.

Acts 1986, No. 202, §1; Acts 1990, No. 290, §2, eff. Jan. 1, 1991.

RS 35:401

Ex officio notary public for the Sabine River Authority

§401. Ex officio notary public for the Sabine River Authority

A. Notwithstanding any provisions of the law relative to qualification for notaries public, the director of the Sabine River Authority may appoint one employee of the Sabine River Authority as ex officio notary public.

B. Such ex officio notary public may exercise the functions of a notary public only to administer oaths, receive sworn statements, and execute affidavits, acknowledgments, and other documents, and shall be limited to matters within the official functions of the Sabine River Authority.

C. All acts performed by such ex officio notary public authorized by this Section may be performed only in the parishes of Sabine, DeSoto, Beauregard, Calcasieu, Cameron, and Vernon and shall be performed without charge or other compensation.

D. The director of the Sabine River Authority may suspend or terminate any appointment made pursuant to this Section at any time and separation from the employ of the Sabine River Authority shall automatically terminate the powers of such ex officio notary public.

Acts 1988, No. 195, §1, eff. July 6, 1988; Acts 1990, No. 290, §2, eff. Jan. 1, 1991.

RS 35:402

Ex officio notaries public for the vital records registry

§402. Ex officio notaries public for the vital records registry

A. Notwithstanding any other provisions of the law to the contrary governing the qualifications and appointment of notaries public, the governor may appoint the state registrar of vital records to serve as ex officio notary public, and the state registrar of vital records may designate not more than three employees in the vital records registry to serve as ex officio notaries public.

B. Such ex officio notaries public may exercise the functions of a notary public only to execute affidavits as required under R.S. 9:224(B) to verify information contained in applications for a marriage license.

C. All acts performed by each ex officio notary public authorized by this Section shall be performed without charge or other compensation.

D. The state registrar of vital records may suspend or terminate any notary public he has appointed pursuant to this Section at any time, and separation from office or employment in the office of the state registrar of vital records of any ex officio notary public under this Section shall automatically terminate the powers of such an ex officio notary public.

Acts 1990, No. 109, §1.

RS 35:403

Ex officio notaries for hospital service district hospitals

§403. Ex officio notaries for hospital service district hospitals

A. Notwithstanding any provisions of the law relative to qualifications of notaries public, the director of a hospital service district hospital may appoint not more than two employees of the hospital as ex officio notaries public.

B. Such ex officio notaries may exercise the functions of a notary public only to administer oaths, receive sworn statements, execute affidavits, and acknowledgments and shall be limited to matters within the official business functions of the hospital.

C. Each ex officio notary public shall fulfill the same bond requirements as provided by law for notaries in the parish in which the hospital is located. The hospital shall pay as an expense of the hospital the costs of the notarial seal, the notarial bond, and any fees required for filing the bond.

D. All acts performed by each ex officio notary public authorized by this Section shall be performed without charge or other compensation.

E. The director of the hospital may suspend or terminate an appointment made pursuant to this Section at any time, and separation from the employ of the hospital shall automatically terminate the powers of the ex officio notary public.

Acts 1990, No. 730, §1, eff. July 24, 1990; Acts 2014, No. 388, §1.

RS 35:404

Ex officio notaries public of the office of financial institutions

§404. Ex officio notaries public of the office of financial institutions

A. Notwithstanding any provisions of law relative to qualifications for notaries public, except R.S. 35:391, the commissioner of financial institutions may appoint two investigators in his office as ex officio notaries public.

B. Such ex officio notaries public may exercise the functions of a notary public only to administer oaths and receive sworn statements and shall be limited to matters within the official functions of the office of financial institutions. They shall use the official seal of the department.

C. All acts performed by each ex officio notary public authorized by this Section shall be performed without charge or other compensation.

Acts 1991, No. 233, §1, eff. July 2, 1991.

RS 35:405

Ex officio notary public for levee district police

§405. Ex officio notary public for levee district police

A. Notwithstanding any provisions of law relative to qualifications for notaries public, except R.S. 35:391, the board of commissioners of a levee district created pursuant to the laws of this state may appoint three officers as ex officio notaries public. For purposes of this Section, "officer" means an employee who has attained the rank of lieutenant or a higher rank and who is a full-time commissioned police officer of the levee district.

B. Such ex officio notary public may exercise the functions of a notary public only to administer oaths, receive sworn statements, execute affidavits, acknowledgments, and other documents, and shall be limited to matters within the official functions of the law enforcement division of the levee district.

C. All acts performed by an ex officio notary public authorized by this Section may be performed only in the parishes in which the respective levee district has jurisdiction.

D. The board of commissioners of each levee district may suspend or terminate an appointment made pursuant to this Section at any time, and separation from the employ of a levee district shall automatically terminate the powers of such an ex officio notary public.

Acts 1992, No. 404, §1.

RS 35:406

Ex officio notaries public of the adult protection agency

§406. Ex officio notaries public of the adult protection agency

A. Notwithstanding any provisions of law relative to qualifications for notaries public, except R.S. 35:391:

NOTE: Paragraph (1) eff. until one or more of the 20 depts. of the executive branch is abolished or if a const. amend. is adopted authorizing the creation of an additional dept. See Acts 2013, No. 384, §§2 and 9.

(1) The director of the office of elderly affairs may appoint two investigators in each region of the adult protection agency, office of elderly affairs, office of the governor, as ex officio notaries public.

NOTE: Paragraph (1) as amended by Acts 2013, No. 384, §2, eff. if one or more of the 20 depts. of the executive branch is abolished or if a const. amend. is adopted authorizing the creation of an additional dept.

(1) The secretary of the Department of Elderly Affairs may appoint two investigators in each region of the adult protection agency, Department of Elderly Affairs, as ex officio notaries public.

(2) The secretary of the Louisiana Department of Health may appoint three investigators in the adult protection agency, Louisiana Department of Health, as ex officio notaries public.

B. Such an ex officio notary public may exercise the functions of a notary public only to administer oaths, receive sworn statements, and execute affidavits and other documents, which shall be limited solely to matters with the official functions of the adult protection agency as provided in R.S. 15:1511(A).

C. All acts performed by each ex officio notary public authorized by this Section shall be performed without charge or other compensation.

NOTE: Subsection D eff. until one or more of the 20 depts. of the executive branch is abolished or if a const. amend. is adopted authorizing the creation of an additional dept. See Acts 2013, No. 384, §§2 and 9.

D. The director or secretary authorized to make such appointments may suspend or terminate any appointment made pursuant to this Section at any time. Separation from the employ of the adult protection agency shall automatically terminate the powers of such an ex officio notary public.

NOTE; Subsection D as amended by Acts 2013, No. 384, §2, eff. if one or more of the 20 depts. of the executive branch is abolished or if a const. amend. is adopted authorizing the creation of an additional dept.

D. The secretary authorized to make such appointments may suspend or terminate any appointment made pursuant to this Section at any time. Separation from the employ of the adult protection agency shall automatically terminate the powers of such an ex officio notary public.

Acts 1993, No. 888, §1; Acts 2010, No. 861, §16; Acts 2013, No. 384, §2, eff. if one of the 20 depts. is abolished or an additional dept. is authorized by the electorate.

RS 35:407

Ex officio notaries for municipal police departments

§407. Ex officio notaries for municipal police departments

A. Notwithstanding any provisions of the law relative to qualifications of notaries public, any chief of police of a municipal police department may designate officers in his office and any mayor in a municipality with a population of less than fifteen thousand may designate employees in his office, and appoint them as ex officio notaries public. Such designation by a mayor shall be for notarial service to the municipal police department and to the office of the mayor.

B. Each officer or employee so appointed as ex officio notary may exercise, within his respective jurisdictional limits, the functions of a notary public only to administer oaths and execute affidavits, acknowledgments, traffic tickets, and other documents, all limited to matters within the official functions of the office of the mayor or the municipal police department for the enforcement of the provisions of any statute which provides for criminal penalties and of the municipal ordinances which the police department is charged with enforcing, and any affidavit required for the enforcement of R.S. 32:661 through 669.

C. All acts performed by each ex officio notary public of a police department or office of the mayor authorized by this Section shall be performed without charge or other compensation and without the necessity of giving bond.

D. The chief of police of the police department or mayor may suspend or terminate an appointment made in his office pursuant to this Section at any time and separation from the employ of the police department or office of the mayor shall automatically terminate the powers of the ex officio notary public.

Acts 1996, 1st Ex. Sess., No. 49, §1, eff. May 7, 1996; Acts 2005, No. 55, §1; Acts 2008, No. 120, §1, eff. June 10, 2008; Acts 2008, No. 904, §3, eff. July 10, 2008; Acts 2010, No. 283, §1.

RS 35:408

Repealed by Acts 2012, No. 866, §3, eff. Jan. 1, 2013.

§408. Repealed by Acts 2012, No. 866, §3, eff. Jan. 1, 2013.

RS 35:409

Ex officio notaries for university police departments

§409. Ex officio notaries for university police departments

A. Notwithstanding any provisions of the law relative to qualifications for and limitations on the number of notaries public, the chief of police of a university police department, which employs peace officers who are certified pursuant to the Peace Officer Standards and Training Law and are duly authorized with the powers of arrest, may designate these officers in his office as ex officio notaries public.

B. Each officer appointed an ex officio notary public may exercise, within the jurisdictional limits of the university police department, the functions of a notary public only to administer oaths and execute affidavits, acknowledgments, traffic tickets, and other documents, all limited to matters within the official functions of the university police department.

C. Such ex officio notary public appointed pursuant to this Section, except for any state employee who serves as an ex officio notary public in the course and scope of his employment, shall fulfill the same bond requirements as provided by law for a notary in the parish in which the university is located. The university shall pay as an expense the costs of the notarial seal, the notarial bond, and any fees required for filing the bond.

D. All acts performed by such an ex officio notary public authorized by this Section shall be performed without charge or other compensation.

E. The chief of police of the university police department may suspend or terminate an appointment made pursuant to this Section at any time, and separation from the employ of the police department shall automatically terminate the powers of such an ex officio notary public.

Acts 2003, No. 454, §1, eff. June 20, 2003.

RS 35:410

Ex officio notaries public for the Louisiana Agricultural Finance Authority or the Department of Agriculture and Forestry

§410. Ex officio notaries public for the Louisiana Agricultural Finance Authority or the Department of Agriculture and Forestry

A. Notwithstanding any provisions of the law relative to qualifications for and limitations on the number of notaries public, the commissioner of agriculture and forestry may appoint employees of the Louisiana Agricultural Finance Authority or the Department of Agriculture and Forestry as ex officio notaries public for the agriculture loan program.

B. Such ex officio notaries public may exercise the functions of a notary public only to administer oaths, receive sworn statements, and execute affidavits, acknowledgments, and other documents, and shall be limited to matters within the official functions for the agriculture loan program.

C. All acts performed by each ex officio notary public authorized by this Section shall be performed without charge or other compensation.

D. The commissioner of agriculture and forestry may suspend or terminate any appointment made pursuant to this Section at any time. Separation from the employ of the Louisiana Agricultural Finance Authority or the Department of Agriculture and Forestry shall automatically terminate the powers of such an ex officio notary public.

Acts 2009, No. 510, §2, eff. July 10, 2009.

RS 35:411

Ex officio notaries public for the Coastal Protection and Restoration Authority

§411. Ex officio notaries public for the Coastal Protection and Restoration Authority

A. The executive director of the Coastal Protection and Restoration Authority may designate as ex officio notaries public up to five employees of the office.

B. Employees so designated may administer oaths, take acknowledgments, and attest on affidavits, and the authority granted under this Section is limited to acts and instruments to which the authority, the executive director acting for the authority, or the Coastal Protection and Restoration Authority Board, is a party, and other documents concerning any matter in which the authority or the Coastal Protection and Restoration Authority Board has an official interest.

C. All acts performed by such ex officio notary public authorized by this Section shall be performed without charge or other compensation and without the necessity of giving bond.

D. The executive director may suspend or terminate any appointment made pursuant to this Section at any time, and separation from the employ of the office shall automatically terminate the powers of such an ex officio notary public.

E. The cost of each notarial seal shall be paid by the Coastal Protection and Restoration Authority.

Acts 2009, No. 523, §5, eff. July 10, 2009; Acts 2016, No. 430, §3.

RS 35:412

Ex officio notaries; nonresident persons licensed to practice law with offices in this state

§412. Ex officio notaries; nonresident persons licensed to practice law with offices in this state

A. A person licensed to practice law in this state who is not a resident of this state but who maintains an office for the practice of law in this state, shall be a notary public ex officio and is authorized and empowered to exercise all the powers and functions of a regularly commissioned notary public in this state in any parish or parishes in which he maintains an office open to the public for the practice of law, upon filing a certificate of good standing from the Louisiana Supreme Court with the secretary of state.

B. No person qualified under this Section shall be required to otherwise qualify for, or hold, a regular commission as notary public to exercise such powers; however, the notary public ex officio shall furnish his current office address and residence address to the secretary of state as the registrar of notaries for the state.

C. Notwithstanding any provision of law to the contrary, any person exercising notarial functions pursuant to this Section is authorized to use the designation "notary public ex officio" with respect to the exercise of his powers and shall be required to post bond as required by the provisions of R.S. 35:391(6).

D. A notary public ex officio exercising notarial functions as authorized by the provisions of this Section may charge fees for notary services commensurate with the reasonable and customary fees for notarial services in the parish or parishes where the notary public ex officio maintains his office.

E. Any exercise of notarial powers pursuant to the provisions of this Section shall be deemed the practice of law for purposes of regulation by the Louisiana Supreme Court.

F. A person authorized as a notary public ex officio pursuant to the provisions of this Section shall exercise his powers and functions as a notary public ex officio only within the parish or parishes in which he maintains an office open to the public for the practice of law in this state.

Acts 2010, No. 692, §1; Acts 2025, No. 258, §1, eff. Feb. 1, 2026.

RS 35:413

Ex officio notaries public for municipal or parish fire departments and fire protection districts

§413. Ex officio notaries public for municipal or parish fire departments and fire protection districts

A. Notwithstanding any provisions of the law relative to qualifications of notaries public, any fire chief of a municipal or parish fire department or fire protection district may designate no more than three employees in his office and appoint them as ex officio notaries public.

B. Each employee so appointed as ex officio notary public may exercise, within his respective jurisdictional limits, the functions of a notary public only to administer oaths and execute affidavits and acknowledgments, all limited to matters within the official functions of the office of the municipal or parish fire department or fire protection district.

C. All acts performed by each ex officio notary public of a municipal or parish fire department or fire protection district authorized by this Section shall be performed without charge or other compensation and without the necessity of giving bond.

D. The fire chief of the municipal or parish fire department or fire protection district may suspend or terminate an appointment made in his office pursuant to this Section at any time, and separation from the employ of the municipal or parish fire department or fire protection district shall automatically terminate the powers of the ex officio notary public.

Acts 2014, No. 323, §1.

RS 35:414

Ex officio notaries public for Natchitoches Parish government

§414. Ex officio notaries public for Natchitoches Parish government

A. Notwithstanding any provisions of the law relative to qualifications of notaries public, the parish president of Natchitoches Parish may designate no more than two employees in his office and appoint them as ex officio notaries public.

B. Each employee so appointed as ex officio notary public may exercise, within his respective jurisdictional limits, the functions of a notary public only to administer oaths, receiving sworn statements, and execute affidavits and acknowledgments, all limited to matters within the official functions of the office of the parish president.

C. All acts performed by each ex officio notary public authorized by this Section shall be performed without charge or other compensation and without the necessity of giving bond.

D. The parish president may suspend or terminate an appointment made in his office pursuant to this Section at any time, and a separation from the employ of the parish shall automatically terminate the former employee's appointment as an ex officio notary public.

Acts 2015, No. 235, §1.

RS 35:415

Ex officio notaries for the Causeway Police Department

§415. Ex officio notaries for the Causeway Police Department

A. Notwithstanding any provisions of the law relative to qualifications for and limitations on the number of notaries public, the chief of police of the Causeway Police Department, which employs peace officers who are certified pursuant to the Peace Officer Standards and Training Law and are duly authorized with the powers of arrest, may designate ten officers in his office as ex officio notaries public.

B. Each officer appointed as an ex officio notary public may exercise, within the jurisdictional limits of the Causeway Police Department, the functions of a notary public only to administer oaths and to execute affidavits, acknowledgments, and traffic tickets, all limited to matters within the official functions of the department.

C. Any acts performed by an ex officio notary public appointed pursuant to this Section shall be performed only in the parishes in which the Causeway Police Department has jurisdiction.

D. All acts performed by an ex officio notary public appointed pursuant to this Section shall be performed without charge or other compensation.

E. The chief of police of the Causeway Police Department may suspend or terminate an appointment made pursuant to this Section at any time and separation from the employ of the department shall automatically terminate the former employee's appointment as an ex officio notary public.

Acts 2016, No. 349, §1, eff. June 2, 2016.

RS 35:416

Ex officio notaries for coroners

§416. Ex officio notaries for coroners

A. Notwithstanding any provisions of the law relative to qualifications for notaries public, each coroner may designate one deputy or assistant per shift for each office location and appoint them as ex officio notaries public.

B.(1) Deputy coroners and assistants so designated may, in the parish in which the coroner serves, administer oaths, take acknowledgments, and attest on affidavits. The authority granted under this Section is limited to acts and instruments to which the coroner, in his official capacity, or the office of the coroner is a party, and other documents concerning any matter in which the coroner in his official capacity, or the office of the coroner has an official interest. For each such action, the ex officio notary shall use the official seal of that respective coroner's office.

(2) Deputy coroners and assistants so designated shall fulfill the same bond requirements as provided by law for notaries in the parish which the coroner serves.

(3) The coroner shall pay as an expense of his office the costs of the notarial seal, the notarial bond, and any fees required for filing the bond.

C. All acts performed by such an ex officio notary public authorized by this Section shall be performed without charge or other compensation.

D. The coroner may suspend or terminate an appointment made pursuant to this Section at any time, and separation from the employ of the coroner shall automatically terminate the powers of such an ex officio notary public.

Acts 2018, No. 169, §1.

RS 35:417

Ex officio notaries public for the DeSoto Parish government

§417. Ex officio notaries public for the DeSoto Parish government

A. Notwithstanding any provisions of the law relative to qualifications of notaries public, the president of the DeSoto Parish Police Jury may designate no more than two employees in his office and appoint them as ex officio notaries public.

B. Each employee so appointed as ex officio notary public may exercise, within his respective jurisdictional limits, the functions of a notary public only to administer oaths, receive sworn statements, and execute affidavits and acknowledgments, all limited to matters within the official functions of the office of the DeSoto Parish Police Jury.

C. All acts performed by each ex officio notary public authorized by this Section shall be performed without charge or other compensation and without the necessity of giving bond.

D. The president of the police jury may suspend or terminate an appointment made in his office pursuant to this Section at any time, and a separation from the employ of the parish shall automatically terminate the former employee's appointment as an ex officio notary public.

Acts 2019, No. 3, §1.

RS 35:418

Ex officio notaries public for the Beauregard Parish School Board

§418. Ex officio notaries public for the Beauregard Parish School Board

A. Notwithstanding any provisions of the law relative to qualifications of notaries public, the superintendent of the Beauregard Parish School Board may designate and appoint no more than two employees in his office as ex officio notaries public.

B. Each employee so appointed as ex officio notary public may exercise, within his respective jurisdictional limits, the functions of a notary public only to administer oaths, receive sworn statements, and execute affidavits and acknowledgments, all limited to matters within the official functions of the office of the Beauregard Parish School Board.

C. All acts performed by each ex officio notary public authorized by this Section shall be performed without charge or other compensation and without the necessity of giving bond.

D. The superintendent of the Beauregard Parish School Board may suspend or terminate an appointment made in his office pursuant to this Section at any time, and a separation from the employ of the school board shall automatically terminate the former employee's appointment as an ex officio notary public.

Acts 2022, No. 363, §1.

RS 35:451

COMMISSIONERS [REPEALED]

CHAPTER 7. COMMISSIONERS [REPEALED]

§451. §§451 to 460 Repealed by Acts 1977, No. 225, §1

RS 35:511

Forms of acknowledgment

CHAPTER 8. ACKNOWLEDGMENTS

PART I. ACKNOWLEDGMENTS WITHIN STATE

§511. Forms of acknowledgment

Either the forms of acknowledgment now in use in this State, or the following, may be used in the case of conveyances or other written instruments, whenever such acknowledgment is required or authorized by law for any purpose:

(Begin in all cases by a caption specifying the state and place where the acknowledgment is taken).

1. In the case of natural persons acting in their own right:

On this _____ day of _____, 20__, _____ before me personally appeared A B (or A B and C D), to me known to be the person (or persons) described in and who executed the foregoing instrument, and acknowledged that he (or they) executed it as his (or their) free act and deed.

2. In the case of natural persons acting by attorney:

On this _____ day of _____, 20__, before me personally appeared A B, to me known to be the person who executed the foregoing instrument in behalf of C D, and acknowledged that he executed it as the free act and deed of said C D.

3. In the case of corporations or joint stock associations:

On this _____ day of _____, 20__, before me appeared A B, to me personally known, who, being by me duly sworn (or affirmed) did say that he is the president (or other officer or agent of the corporation or association), of (describing the corporation or association), and that the seal affixed to said instrument is the corporate seal of said corporation (or association) and that the instrument was signed and sealed in behalf of the corporation (or association) by authority of its Board of Directors (or trustees) and that A B acknowledged the instrument to be the free act and deed of the corporation (or association).

(In case the corporation or association has no corporate seal, omit the words "the seal affixed to said instrument is the corporate seal of the corporation (or association), and that" and add, at the end of the affidavit clause, the words "and that the corporation (or association) has no corporate seal").

(In all cases, acknowledgments taken in this state shall be signed in conformity with the provisions of R.S. 35:12 and either Article 1836 of the Louisiana Civil Code or R.S. 13:3720).

Acts 2004, No. 455, §1.

RS 35:512

Married women, acknowledgment by

§512. Married women, acknowledgment by

The acknowledgment of a married woman when required by law may be taken in the same form as if she were sole and without any examination separate and apart from her husband.

RS 35:513

Officers before whom proof or acknowledgment taken in other states

§513. Officers before whom proof or acknowledgment taken in other states

The proof or acknowledgment of any deed or other written instrument required to be proved or acknowledged in order to enable the same to be recorded or read in evidence, when made by any person without this state and within any other state, territory, or district of the United States, may be made before any officer of such state, territory or district, authorized by the laws thereof to take the proof and acknowledgment of deeds, and when so taken and certified under his official seal, shall be entitled to be recorded in this state, and may be read in evidence in the same manner and with like effect as proofs and acknowledgments taken before any of the officers now authorized by law to take such proofs and acknowledgments, and whose authority so to do is not intended to be hereby affected.

RS 35:551

Officers before whom made

PART II. FOREIGN ACKNOWLEDGMENTS

§551. Officers before whom made

All instruments requiring acknowledgment, if acknowledged without the United States, shall be acknowledged before an ambassador, minister, envoy or charge d'affaires of the United States, in the country to which he is accredited, or before one of the following officers commissioned or accredited to act at the place where the acknowledgment is taken, and having an official seal, viz.:--any officer of the United States; a notary public; or a commissioner or other agent of this state having power to take acknowledgments.

RS 35:552

Form of certificate of acknowledgment

§552. Form of certificate of acknowledgment

Every certificate of acknowledgment, made without the United States, shall contain the name or names of the person or persons making the acknowledgment, the date when and the place where made, a statement of the fact that the person or persons making the acknowledgment knew the contents of the instrument, and acknowledged it to be his, her or their act; the certificate shall also contain the name of the person before whom made, his official title, and be sealed with his official seal and may be substantially in the following form:

. . . . . (name of country).

. . . . . (name of city, province or other political subdivision).

Before the undersigned . . . . . (naming the officer and designating his official title) duly commissioned (or appointed) and qualified, this day personally appeared at the place above named . . . . . (naming the person or pesons acknowledging) who declared that he (she or they) knew the contents of the foregoing instrument, and acknowledged it to be his (her or their) act.

Witness my hand and official seal this . . . . . day of . . . . . 19 . .

. . . . . (name of officer).

(seal)

. . . . . (official title)

When the seal affixed shall contain the names or the official style of the officer, any error in stating, or failure to state otherwise the name or the official style of the officer, shall not render the certificate defective.

RS 35:553

Acknowledgments in form used in state

§553. Acknowledgments in form used in state

A certificate of acknowledgment of a deed or other instrument acknowledged without the United States before any officer mentioned in R.S. 35:551 shall also be valid if in the same form as now is or hereafter may be required by law, for an acknowledgment within this state.

RS 35:554

Interpretation and construction

§554. Interpretation and construction

This Part shall be so interpreted and construed as to effectuate its general purpose to make uniform the law of those states which enact it.

RS 35:555

Force and effect

§555. Force and effect

Every acknowledgment or proof of any legal instrument and any oath or affirmation, taken or made before a commissioner, ambassador, minister, charge d'affaires, secretary of legation, consul general, consul, or vice consul, and every attestation or authentication made by them, when duly certified as above provided, shall have the force and effect of an authentic act executed in this state.

RS 35:601

Unlawful exercise of notarial powers; penalties

CHAPTER 9. UNAUTHORIZED EXERCISE OF NOTARIAL POWERS

§601. Unlawful exercise of notarial powers; penalties

A. A person, who has not first been duly authorized to exercise notarial powers in this state or whose authority to exercise notarial powers in this state has been judicially revoked, shall not perform any of the following actions:

(1) Exercise or purport to exercise any notarial function.

(2) Hold himself out to the public as being entitled to exercise notarial functions.

(3) Render or furnish notarial services.

(4) Take any acknowledgment, administer any oath, or execute any instrument purportedly as a notary public or as a person purportedly authorized to exercise notarial power and authority.

(5) Assume to be a notary public or to be authorized to exercise notarial functions.

(6) Assume, use, or advertise the title of notary public or ex officio notary or equivalent terms in any language, or any similar title in such a manner as to convey the impression that he is authorized to exercise notarial powers.

B.(1) Any person who violates any provision of this Section shall be fined not more than one thousand dollars or imprisoned for not more than two years, or both.

(2) In addition to the penalties provided by Paragraph (1) of this Subsection, the person shall be required to make full restitution for all costs required to authenticate, confirm, or ratify any instruments that fail to qualify as notarial acts due to the lack of proper authority of the notary or purported notary, including all costs of recordation and all damages each affected party may suffer.

Acts 2008, No. 904, §2, eff. July 10, 2008.

RS 35:602

Unlawful exercise of prior authorized or limited notarial powers; penalties

§602. Unlawful exercise of prior authorized or limited notarial powers; penalties

A. No person who has been duly appointed to the office of notary public or who has been otherwise authorized to exercise notarial functions in this state shall exercise any notarial function in this state during any period when:

(1) His commission or authority to exercise notarial functions is either:

(a) Statutorily or judicially suspended.

(b) Statutorily or administratively revoked.

(2) He is no longer validly commissioned in this state.

(3) He has elected to place his commission in retirement status under the provisions of R.S. 35:202(G).

(4) He is no longer validly possessed of the office or position from which his authority to exercise notarial functions was derived.

(5) He has been convicted of a felony and has not been pardoned.

(6) He is not authorized by law to exercise that particular notarial function.

B.(1) Any person who knowingly violates any provision of this Section shall be fined not more than one thousand dollars and shall be required to make full restitution for all costs required to authenticate, confirm, or ratify any instruments that fail to qualify as notarial acts due to the lack of proper authority of the notary or purported notary, including all costs of recordation and all damages each affected party may suffer.

(2) In addition to the penalties provided in Paragraph (1) of this Subsection, the person shall also be subject to a suspension or revocation of his commission and shall be subject to being permanently enjoined from exercising any notarial function in any capacity.

Acts 2008, No. 904, §2, eff. July 10, 2008.

RS 35:603

Secretary of state; duties upon receipt of sworn complaint

§603. Secretary of state; duties upon receipt of sworn complaint

A. The secretary of state, upon receipt of a sworn complaint alleging a violation of the provisions of R.S. 35:601 or 602, shall proceed as follows:

(1) If the records of the secretary of state indicate that the person who is the subject of the complaint has a valid active status, the secretary shall notify that person and the complainant of the findings.

(2) If the records of the secretary of state indicate that the person who is the subject of the complaint does not have a valid active status, the secretary of state shall send notice by certified mail, return receipt requested, to that person of the impediment to his authority and allow that person to remedy, if possible, the impediment within ten days of receipt of the notice.

(3) If the person who is the subject of the complaint fails to remedy the impediment to his authority within the time provided by Paragraph (2) of this Subsection, the secretary of state shall transmit a copy of the sworn complaint to the appropriate law enforcement or prosecutorial agency for further investigation or prosecution.

B. The secretary of state shall provide a form to be used to file a complaint alleging a violation of the provisions of R.S. 35:601 or 602. All complaints filed with the secretary of state shall be on the complaint form prepared by the secretary of state or on a form which contains the same information as required by the complaint form prepared by the secretary of state.

C. Nothing in this Section shall operate to limit any other legal methods of notice, service of process, or enforcement of any provision of R.S. 35:601 or 602.

Acts 2008, No. 904, §2, eff. July 10, 2008.

RS 35:604

Applicability to licensed attorneys

§604. Applicability to licensed attorneys

Notwithstanding any provision of law to the contrary, the authority of the Louisiana Supreme Court to regulate the practice of law shall supersede the provisions of this Chapter with respect to the enforcement of its provisions against an attorney licensed to practice law in this state.

Acts 2008, No. 904, §2, eff. July 10, 2008.

RS 35:621

Short title

CHAPTER 10. REMOTE ONLINE NOTARIZATION

§621. Short title

This Chapter may be cited as the "Remote Online Notarization Act".

Acts 2020, No. 254, §4, see Act.

RS 35:622

Definitions

§622. Definitions

A. In this Chapter:

(1) "Communication technology" means an electronic device or process that allows substantially simultaneous communication by sight and sound.

(2) "Credential analysis" means a process through which the authenticity of an individual's government-issued identification credential is evaluated by another person through review of public and proprietary data sources.

(3) "Identity proofing" means a process through which the identity of an individual is affirmed by another person by either of the following means:

(a) Dynamic knowledge-based authentication, such as a review of personal information from public or proprietary data sources.

(b) Analysis of biometric data, such as facial recognition, voiceprint analysis, or fingerprint analysis.

(4) "Remote online notarial act" means an instrument executed before a notary public by means of communication technology that meets the standards adopted under this Chapter.

(5) "Remote online notarization" means the process through which an instrument is executed before a notary public by means of communication technology that meets the standards adopted under this Chapter.

B. The definitions of "electronic", "electronic record", "electronic signature", and "record" as provided by the Louisiana Uniform Electronic Transactions Act, R.S. 9:2601 et seq., apply in this Chapter.

Acts 2020, No. 254, §4, see Act.

RS 35:623

Legal recognition of remote online notarial acts

§623. Legal recognition of remote online notarial acts

A. Except as otherwise provided in Subsections B and C of this Section, a remote online notarial act that meets the requirements of R.S. 35:625 through 627 satisfies any requirement that a party appear before a notary public at the time of the execution of the instrument. In all other respects, a remote online notarial act shall comply with other applicable laws governing the manner of the execution of that act.

B. The following instruments shall not be executed by remote online notarization:

(1) Testaments or codicils thereto.

(2) Trust instruments or acknowledgments thereof.

(3) Donations inter vivos.

(4) Matrimonial agreements or acknowledgments thereof.

(5) Acts modifying, waiving, or extinguishing an obligation of final spousal support or acknowledgments thereof.

C. Remote online notarization may not be used to execute an authentic act as defined in Civil Code Article 1833. Except as otherwise provided in Subsection B of this Section, an act that fails to be authentic as a result of being executed by remote online notarization may still be valid as an act under private signature or an acknowledged act.

D. This Chapter supplements and does not repeal, supersede, or limit the provisions of the Louisiana Uniform Electronic Transactions Act, R.S. 9:2601 et seq.

Acts 2020, No. 254, §4, see Act.

RS 35:624

Standards for remote online notarization

§624. Standards for remote online notarization

A. The secretary of state shall, by rule adopted in accordance with the Administrative Procedure Act, develop and maintain standards for the implementation of this Chapter.

B. In developing standards for remote online notarization, the secretary of state shall form a stakeholder committee that shall include but need not be limited to representatives of the Louisiana Land Title Association, the Louisiana Association of Independent Land Title Agents, the Louisiana Notary Association, the Louisiana Bankers Association, the Louisiana Clerks of Court Association, the Louisiana State Bar Association, the Louisiana Public Tag Association, and the Louisiana State Law Institute.

C. The rules shall be adopted prior to February 1, 2022, and may thereafter be modified, amended, or supplemented with or without the input of the stakeholder committee.

Acts 2020, No. 254, §4, see Act.

RS 35:625

Notaries authorized to perform remote online notarization

NOTE: §625 eff. upon the enactment of the SECURE Notarization Act of the 116th Congress. See Acts 2020, No. 254.

§625. Notaries authorized to perform remote online notarization

A. Any regularly commissioned notary public who holds a valid notarial commission in the state of Louisiana is hereby authorized to perform remote online notarizations.

B. The provisions of this Section shall cease to be effective on February 1, 2022.

Acts 2020, No. 254, §5, see Act.

RS 35:625.1

Notaries authorized to perform remote online notarization

§625.1. Notaries authorized to perform remote online notarization

A. Only a regularly commissioned notary public who holds a valid notarial commission in the state of Louisiana may be authorized by the secretary of state to perform remote online notarization.

B. In order to obtain authorization to perform remote online notarization, a notary public shall submit an application to the secretary of state in a format prescribed by the secretary of state, complete any course of instruction required by the secretary of state, and satisfy any other requirements imposed by rules adopted by the secretary of state.

C. The authority to perform remote online notarization shall continue as long as the notary public is validly commissioned and the secretary of state has not revoked the notary public's authority to perform remote online notarization.

Acts 2020, No. 254, §6, eff. Feb. 1, 2022.

RS 35:626

Location of notary, parties, and witnesses; location of remote online notarial act

§626. Location of notary, parties, and witnesses; location of remote online notarial act

A. A notary public physically located in any parish of this state in which the notary has the power to exercise the function of a notary public may perform a remote online notarization for a party who is not in the physical presence of the notary and who may be located in or outside this state. A witness to a remote online notarial act shall be in the physical presence of the party.

B. A remote online notarial act is deemed to be executed in any parish of this state where the notary public is physically located at the time of the remote online notarization if the notary public has jurisdiction in that parish.

C. An action on a contract that is a remote online notarial act may be brought in any parish in which a party was physically located at the time of the remote online notarization.

Acts 2020, No. 254, §4, see Act; Acts 2022, No. 192, §1.

RS 35:627

Procedure for performing remote online notarization

§627. Procedure for performing remote online notarization

A. At the time of a remote online notarization, the notary public shall verify the identity of any party or witness appearing remotely, both through use of communication technology and by one of the following means:

(1) The notary public's personal knowledge of the individual.

(2) A process that includes all of the following:

(a) Remote presentation by the individual of a government-issued identification credential, such as a passport or driver's license, that contains the signature and a photograph of the individual.

(b) Credential analysis.

(c) Identity proofing.

B. The notary public shall do all of the following:

(1) Include in the remote online notarial act a statement that it is a remote online notarial act.

(2) Attach to or cause to be logically associated with the remote online notarial act the notary public's electronic signature, together with all other information required to be included in the act by other applicable law.

(3) Digitally sign the remote online notarial act in a manner that renders any subsequent change or modification of the remote online notarial act to be evident.

Acts 2020, No. 254, §4, see Act.

RS 35:628

Duties of the notary

§628. Duties of the notary

The notary public shall take reasonable steps to ensure both of the following:

(1) The communication technology used in the performance of a remote online notarization is secure from unauthorized interception.

(2) The electronic record before the notary public is the same electronic record in which the party made a statement or on which the party executed or adopted an electronic signature.

Acts 2020, No. 254, §4, see Act.

RS 35:629

Records of remote online notarizations

§629. Records of remote online notarizations

A. The notary public shall do all of the following:

(1) Maintain electronic copies capable of being printed in a tangible medium of all remote online notarial acts for at least ten years after the date of the remote online notarization.

(2) Maintain an audio and video recording of each remote online notarization for at least ten years after the date of the remote online notarization.

(3) Take reasonable steps to secure the records required to be maintained by this Section from corruption, loss, destruction, and unauthorized interception or alteration.

B. The notary public may designate a custodian to maintain the electronic records required by Subsection A of this Section, provided that the notary public has unrestricted access to the electronic records and the custodian meets any standards established by the secretary of state for the maintenance of electronic records.

Acts 2020, No. 254, §4, see Act.

RS 35:630

No variation by agreement

§630. No variation by agreement

The provisions of this Chapter may not be varied by agreement.

Acts 2020, No. 254, §4, see Act.

RS 35:701

Purpose; ratification

CHAPTER 11. MODIFICATION OF PRESENCE REQUIREMENT FOR NOTARY FUNCTIONS PERFORMED DURING 2020 COVID-19 PUBLIC HEALTH EMERGENCY

§701. Purpose; ratification

A. The legislature finds that the COVID-19 public health emergency created a statewide emergency disrupting the ability of notaries public to be in the physical presence of persons whose signatures the notary public was authenticating. This Chapter is enacted for the benefit and protection of the state as a whole and its citizens, to prevent injustice, inequity, undue hardship, and disruption of transactions to persons relying on the authentication of signatures of persons not in the physical presence of a notary public by a notary public who authenticated the signature through electronic means using audio-video communication. Therefore, this Chapter shall be liberally construed to effect its purposes.

B. The action of the governor of this state in issuing Section 6 of Proclamation Number 37 JBE 2020 and Part C of Section 5 of Proclamation Number 41 JBE 2020 is hereby approved, ratified, and confirmed subject to the provisions of this Chapter.

Acts 2020, No. 131, §1, eff. June 9, 2020.

NOTE: See Acts 2020, No. 131, §3, regarding retroactive application of the Act.

RS 35:702

Remote notarization authorized

§702. Remote notarization authorized

A. Notwithstanding any law to the contrary, any act in which any person or witness appeared before a notary public using an electronic device or process which allowed all such persons and the notary public to communicate simultaneously by sight and sound and to which the electronic signatures of such persons, witnesses, and the notary public were affixed on or after March 11, 2020, and before May 1, 2020, shall have the same force and effect as if all persons, witnesses, and the notary public had been in the physical presence of each other.

B. The provisions of Subsection A of this Section shall not apply to any testament, trust instrument, donation inter vivos, matrimonial agreement, act modifying, waiving, or extinguishing an obligation of final spousal support, or any amendments to such acts, or authentic acts.

C. Any act which would constitute an authentic act but for the appearance of one or more necessary persons via electronic means, may still be valid as an act under private signature or an acknowledged act.

Acts 2020, No. 131, §1, eff. June 9, 2020.

NOTE: See Acts 2020, No. 131, §3, regarding retroactive application of the Act.